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118TH CONGRESS
2D SESSION

H. R. 8752

[Report No. 118–553]

Making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2025, and for other purposes.

IN THE HOUSE OF REPRESENTATIVES

JUNE 14, 2024

Mr. AMODEI, from the Committee on Appropriations, reported the following bill; which was committed to the Committee of the Whole House on the State of the Union and ordered to be printed

A BILL

Making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2025, and for other purposes.

1 *Be it enacted by the Senate and House of Representa-*
2 *tives of the United States of America in Congress assembled,*
3 That the following sums are appropriated, out of any
4 money in the Treasury not otherwise appropriated, for the
5 Department of Homeland Security for the fiscal year end-
6 ing September 30, 2025, and for other purposes, namely:

7 TITLE I

8 DEPARTMENTAL MANAGEMENT, INTEL-
9 LIGENCE, SITUATIONAL AWARENESS, AND
10 OVERSIGHT

11 OFFICE OF THE SECRETARY AND EXECUTIVE

12 MANAGEMENT

13 OPERATIONS AND SUPPORT

14 For necessary expenses of the Office of the Secretary
15 and for executive management for operations and support,
16 \$281,358,000, of which \$22,151,000 shall remain avail-
17 able until September 30, 2026: *Provided*, That \$5,000,000
18 shall be withheld from obligation until the Secretary sub-
19 mits, to the Committees on Appropriations of the House
20 of Representatives and the Senate, responses to all ques-
21 tions for the record for each hearing on the fiscal year
22 2026 budget submission for the Department of Homeland
23 Security held by such Committees prior to July 1: *Pro-*
24 *vided further*, That not to exceed \$30,000 shall be for offi-
25 cial reception and representation expenses.

1 MANAGEMENT DIRECTORATE
2 OPERATIONS AND SUPPORT

3 For necessary expenses of the Management Direc-
4 torate for operations and support, \$1,637,290,000: *Pro-*
5 *vided*, That not to exceed \$2,000 shall be for official recep-
6 tion and representation expenses.

7 PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

8 For necessary expenses of the Management Direc-
9 torate for procurement, construction, and improvements,
10 \$54,337,000, to remain available until September 30,
11 2027.

12 FEDERAL PROTECTIVE SERVICE

13 The revenues and collections of security fees credited
14 to this account shall be available until expended for nec-
15 essary expenses related to the protection of federally
16 owned and leased buildings and for the operations of the
17 Federal Protective Service.

18 INTELLIGENCE, ANALYSIS, AND SITUATIONAL

19 AWARENESS

20 OPERATIONS AND SUPPORT

21 For necessary expenses of the Office of Intelligence
22 and Analysis and the Office of Homeland Security Situa-
23 tional Awareness for operations and support,
24 \$345,360,000, of which \$105,701,000 shall remain avail-
25 able until September 30, 2026: *Provided*, That not to ex-

1 ceed \$2,000,000 is available for facility needs associated
2 with secure space at fusion centers, including improve-
3 ments to buildings: *Provided further*, That not to exceed
4 \$3,825 shall be for official reception and representation
5 expenses.

6 OFFICE OF INSPECTOR GENERAL

7 OPERATIONS AND SUPPORT

8 For necessary expenses of the Office of Inspector
9 General for operations and support, \$225,294,000: *Pro-*
10 *vided*, That not to exceed \$300,000 may be used for cer-
11 tain confidential operational expenses, including the pay-
12 ment of informants, to be expended at the direction of the
13 Inspector General.

14 ADMINISTRATIVE PROVISIONS

15 SEC. 101. (a) The Secretary of Homeland Security
16 shall submit a report not later than October 15, 2025,
17 to the Inspector General of the Department of Homeland
18 Security listing all grants and contracts awarded by any
19 means other than full and open competition during fiscal
20 years 2024 or 2025.

21 (b) The Inspector General shall review the report re-
22 quired by subsection (a) to assess departmental compli-
23 ance with applicable laws and regulations and report the
24 results of that review to the Committees on Appropriations

1 of the House of Representatives and the Senate not later
2 than February 15, 2026.

3 SEC. 102. Not later than 30 days after the last day
4 of each month, the Chief Financial Officer of the Depart-
5 ment of Homeland Security shall submit to the Commit-
6 tees on Appropriations of the House of Representatives
7 and the Senate a monthly budget and staffing report that
8 includes total obligations of the Department for that
9 month and for the fiscal year at the appropriation and
10 program, project, and activity levels, by the source year
11 of the appropriation.

12 SEC. 103. (a) The Secretary of Homeland Security,
13 in consultation with the Secretary of the Treasury, shall
14 notify the Committees on Appropriations of the House of
15 Representatives and the Senate of any proposed transfers
16 of funds available under section 9705(g)(4)(B) of title 31,
17 United States Code, from the Department of the Treasury
18 Forfeiture Fund to any agency within the Department of
19 Homeland Security.

20 (b) None of the funds identified for such a transfer
21 may be obligated until the Committees on Appropriations
22 of the House of Representatives and the Senate are noti-
23 fied of the proposed transfer.

24 SEC. 104. All official costs associated with the use
25 of Government aircraft by Department of Homeland Secu-

1 rity personnel to support official travel of the Secretary
2 and the Deputy Secretary shall be paid from amounts
3 made available for the Office of the Secretary.

4 SEC. 105. (a) The Under Secretary for Management
5 shall brief the Committees on Appropriations of the House
6 of Representatives and the Senate not later than 45 days
7 after the end of each fiscal quarter on all Level 1 and
8 Level 2 acquisition programs on the Master Acquisition
9 Oversight list between Acquisition Decision Event and
10 Full Operational Capability, including programs that have
11 been removed from such list during the preceding quarter.

12 (b) For each such program, the briefing described in
13 subsection (a) shall include—

14 (1) a description of the purpose of the program,
15 including the capabilities being acquired and the
16 component(s) sponsoring the acquisition;

17 (2) the total number of units, as appropriate, to
18 be acquired annually until procurement is complete
19 under the current acquisition program baseline;

20 (3) the Acquisition Review Board status, in-
21 cluding—

22 (A) the current acquisition phase by incre-
23 ment, as applicable;

24 (B) the date of the most recent review; and

1 (C) whether the program has been paused
2 or is in breach status;

3 (4) a comparison between the initial Depart-
4 ment-approved acquisition program baseline cost,
5 schedule, and performance thresholds and objectives
6 and the program's current such thresholds and ob-
7 jectives, if applicable;

8 (5) the lifecycle cost estimate, adjusted for com-
9 parison to the Future Years Homeland Security
10 Program, including—

11 (A) the confidence level for the estimate;

12 (B) the fiscal years included in the esti-
13 mate;

14 (C) a breakout of the estimate for the
15 prior five years, the current year, and the budg-
16 et year;

17 (D) a breakout of the estimate by appro-
18 priation account or other funding source; and

19 (E) a description of and rationale for any
20 changes to the estimate as compared to the pre-
21 viously approved baseline, as applicable, and
22 during the prior fiscal year;

23 (6) a summary of the findings of any inde-
24 pendent verification and validation of the items to be

1 acquired or an explanation for why no such
2 verification and validation has been performed;

3 (7) a table displaying the obligation of all pro-
4 gram funds by prior fiscal year, the estimated obli-
5 gation of funds for the current fiscal year, and an
6 estimate for the planned carryover of funds into the
7 subsequent fiscal year;

8 (8) a listing of prime contractors and major
9 subcontractors; and

10 (9) narrative descriptions of risks to cost,
11 schedule, or performance that could result in a pro-
12 gram breach if not successfully mitigated.

13 (c) The Under Secretary for Management shall sub-
14 mit each approved Acquisition Decision Memorandum for
15 programs described in this section to the Committees on
16 Appropriations of the House of Representatives and the
17 Senate not later than five business days after the date of
18 approval of such memorandum by the Under Secretary for
19 Management or the designee of the Under Secretary for
20 Management.

21 SEC. 106. (a) None of the funds made available to
22 the Department of Homeland Security in this Act or prior
23 appropriations Acts may be obligated for any new pilot
24 or demonstration unless the component or office carrying

1 out such pilot or demonstration has documented the infor-
2 mation described in subsection (c).

3 (b) Prior to the obligation of any such funds made
4 available for “Operations and Support” for a new pilot
5 or demonstration, the Under Secretary for Management
6 shall provide a report to the Committees on Appropria-
7 tions of the House of Representatives and the Senate on
8 the information described in subsection (c).

9 (c) The information required under subsections (a)
10 and (b) for a pilot or demonstration shall include the fol-
11 lowing—

12 (1) documented objectives that are well-defined
13 and measurable;

14 (2) an assessment methodology that details—

15 (A) the type and source of assessment
16 data;

17 (B) the methods for, and frequency of, col-
18 lecting such data; and

19 (C) how such data will be analyzed; and

20 (3) an implementation plan, including mile-
21 stones, cost estimates, and implementation sched-
22 ules, including a projected end date.

23 (d) Not later than 90 days after the date of comple-
24 tion of a pilot or demonstration described in subsection
25 (e), the Under Secretary for Management shall provide a

1 report to the Committees on Appropriations of the House
2 of Representatives and the Senate detailing lessons
3 learned, actual costs, any planned expansion or continu-
4 ation of the pilot or demonstration, and any planned tran-
5 sition of such pilot or demonstration into an enduring pro-
6 gram or operation.

7 (e) For the purposes of this section, a pilot or dem-
8 onstration program is a study, demonstration, experi-
9 mental program, or trial that—

10 (1) is a small-scale, short-term experiment con-
11 ducted in order to evaluate feasibility, duration,
12 costs, or adverse events, and improve upon the de-
13 sign of an effort prior to implementation of a larger
14 scale effort; and

15 (2) uses more than 10 full-time equivalents or
16 obligates, or proposes to obligate, \$5,000,000 or
17 more, but does not include congressionally directed
18 programs or enhancements and does not include pro-
19 grams that were in operation as of the date of the
20 enactment of this Act.

21 (f) For the purposes of this section, a pilot or dem-
22 onstration does not include any testing, evaluation, or ini-
23 tial deployment phase executed under a procurement con-
24 tract for the acquisition of information technology services
25 or systems, or any pilot or demonstration carried out by

1 a non-Federal recipient under any financial assistance
2 agreement funded by the Department.

3 TITLE II
4 SECURITY, ENFORCEMENT, AND
5 INVESTIGATIONS
6 U.S. CUSTOMS AND BORDER PROTECTION
7 OPERATIONS AND SUPPORT
8 (INCLUDING TRANSFER OF FUNDS)

9 For necessary expenses of U.S. Customs and Border
10 Protection for operations and support, including the trans-
11 portation of unaccompanied alien minors; the provision of
12 air and marine support to Federal, State, local, and inter-
13 national agencies in the enforcement or administration of
14 laws enforced by the Department of Homeland Security;
15 at the discretion of the Secretary of Homeland Security,
16 the provision of such support to Federal, State, and local
17 agencies in other law enforcement and emergency humani-
18 tarian efforts; the purchase and lease of up to 7,500
19 (6,500 for replacement only) police-type vehicles; the pur-
20 chase, maintenance, or operation of marine vessels, air-
21 craft, and unmanned aerial systems; and contracting with
22 individuals for personal services abroad; \$16,566,247,000;
23 of which \$3,274,000 shall be derived from the Harbor
24 Maintenance Trust Fund for administrative expenses re-
25 lated to the collection of the Harbor Maintenance Fee pur-

1 suant to section 9505(c)(3) of the Internal Revenue Code
2 of 1986 (26 U.S.C. 9505(c)(3)) and notwithstanding sec-
3 tion 1511(e)(1) of the Homeland Security Act of 2002 (6
4 U.S.C. 551(e)(1)); of which \$550,000,000 shall be avail-
5 able until September 30, 2026; and of which such sums
6 as become available in the Customs User Fee Account, ex-
7 cept sums subject to section 13031(f)(3) of the Consoli-
8 dated Omnibus Budget Reconciliation Act of 1985 (19
9 U.S.C. 58c(f)(3)), shall be derived from that account: *Pro-*
10 *vided*, That not to exceed \$34,425 shall be for official re-
11 ception and representation expenses: *Provided further*,
12 That not to exceed \$150,000 shall be available for pay-
13 ment for rental space in connection with preclearance op-
14 erations: *Provided further*, That not to exceed \$2,000,000
15 shall be for awards of compensation to informants, to be
16 accounted for solely under the certificate of the Secretary
17 of Homeland Security: *Provided further*, That not to ex-
18 ceed \$2,500,000 may be transferred to the Bureau of In-
19 dian Affairs for the maintenance and repair of roads on
20 Native American reservations used by the U.S. Border Pa-
21 trol.

22 PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

23 For necessary expenses of U.S. Customs and Border
24 Protection for procurement, construction, and improve-
25 ments, including procurement of marine vessels, aircraft,

1 and unmanned aerial systems, \$1,390,338,000, of which
2 \$766,684,000 shall remain available until September 30,
3 2027, and of which \$623,654,000 shall remain available
4 until September 30, 2029.

5 U.S. IMMIGRATION AND CUSTOMS ENFORCEMENT
6 OPERATIONS AND SUPPORT

7 For necessary expenses of U.S. Immigration and
8 Customs Enforcement for operations and support, includ-
9 ing the purchase and lease of up to 3,790 (2,350 for re-
10 placement only) police-type vehicles; overseas vetted units;
11 and maintenance, minor construction, and minor leasehold
12 improvements at owned and leased facilities;
13 \$10,497,243,000; of which not less than \$6,000,000 shall
14 remain available until expended for efforts to enforce laws
15 against forced child labor; of which \$46,696,000 shall re-
16 main available until September 30, 2026; of which not less
17 than \$2,000,000 is for paid apprenticeships for partici-
18 pants in the Human Exploitation Rescue Operative Child-
19 Rescue Corps; of which not less than \$15,000,000 shall
20 be available for investigation of intellectual property rights
21 violations, including operation of the National Intellectual
22 Property Rights Coordination Center; and of which not
23 less than \$5,900,389,000 shall be for enforcement, deten-
24 tion, and removal operations, including transportation of
25 unaccompanied alien minors, of which not less than

1 \$3,081,725,000 shall remain available until September 30,
2 2026: *Provided*, That not to exceed \$11,475 shall be for
3 official reception and representation expenses: *Provided*
4 *further*, That not to exceed \$10,000,000 shall be available
5 until expended for conducting special operations under
6 section 3131 of the Customs Enforcement Act of 1986 (19
7 U.S.C. 2081): *Provided further*, That not to exceed
8 \$2,000,000 shall be for awards of compensation to inform-
9 ants, to be accounted for solely under the certificate of
10 the Secretary of Homeland Security: *Provided further*,
11 That not to exceed \$11,216,000 shall be available to fund
12 or reimburse other Federal agencies for the costs associ-
13 ated with the care, maintenance, and repatriation of
14 smuggled aliens unlawfully present in the United States:
15 *Provided further*, That not less than \$2,000,000 shall be
16 for entering into new agreements for the delegation of law
17 enforcement authority provided by section 287(g) of the
18 Immigration and Nationality Act: *Provided further*, That
19 funding made available under this heading shall maintain
20 a level of not less than 50,000 detention beds.

21 PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

22 For necessary expenses of U.S. Immigration and
23 Customs Enforcement for procurement, construction, and
24 improvements, \$19,548,000, of which \$6,548,000 shall re-
25 main available until September 30, 2027, and of which

1 \$13,000,000 shall remain available until September 30,
2 2029.

3 TRANSPORTATION SECURITY ADMINISTRATION

4 OPERATIONS AND SUPPORT

5 For necessary expenses of the Transportation Secu-
6 rity Administration for operations and support,
7 \$10,817,225,000, of which \$300,000,000 shall remain
8 available until September 30, 2026: *Provided*, That not
9 to exceed \$7,650 shall be for official reception and rep-
10 resentation expenses: *Provided further*, That security serv-
11 ice fees authorized under section 44940 of title 49, United
12 States Code, shall be credited to this appropriation as off-
13 setting collections and shall be available only for aviation
14 security: *Provided further*, That the sum appropriated
15 under this heading from the general fund shall be reduced
16 on a dollar-for-dollar basis as such offsetting collections
17 are received during fiscal year 2025 so as to result in a
18 final fiscal year appropriation from the general fund esti-
19 mated at not more than \$7,957,225,000.

20 PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

21 For necessary expenses of the Transportation Secu-
22 rity Administration for procurement, construction, and
23 improvements, \$198,428,000, to remain available until
24 September 30, 2027.

1 RESEARCH AND DEVELOPMENT

2 For necessary expenses of the Transportation Secu-
3 rity Administration for research and development,
4 \$17,990,000, to remain available until September 30,
5 2026.

6 COAST GUARD

7 OPERATIONS AND SUPPORT

8 For necessary expenses of the Coast Guard for oper-
9 ations and support including the Coast Guard Reserve;
10 purchase or lease of not to exceed 25 passenger motor ve-
11 hicles, which shall be for replacement only; purchase or
12 lease of small boats for contingent and emergent require-
13 ments (at a unit cost of not more than \$700,000) and
14 repairs and service-life replacements, not to exceed a total
15 of \$31,000,000; purchase, lease, or improvements of boats
16 necessary for overseas deployments and activities; pay-
17 ments pursuant to section 156 of Public Law 97–377 (42
18 U.S.C. 402 note; 96 Stat. 1920); and recreation and wel-
19 fare; \$10,554,261,000, of which \$530,000,000 shall be for
20 defense-related activities; of which \$24,500,000 shall be
21 derived from the Oil Spill Liability Trust Fund to carry
22 out the purposes of section 1012(a)(5) of the Oil Pollution
23 Act of 1990 (33 U.S.C. 2712(a)(5)); of which
24 \$20,000,000 shall remain available until September 30,
25 2027; of which \$24,359,000 shall remain available until

1 September 30, 2029, for environmental compliance and
2 restoration; and of which \$100,000,000 shall remain avail-
3 able until September 30, 2026, which shall only be avail-
4 able for vessel depot level maintenance: *Provided*, That not
5 to exceed \$23,000 shall be for official reception and rep-
6 resentation expenses.

7 PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

8 For necessary expenses of the Coast Guard for pro-
9 curement, construction, and improvements, including aids
10 to navigation, shore facilities (including facilities at De-
11 partment of Defense installations used by the Coast
12 Guard), and vessels and aircraft, including equipment re-
13 lated thereto, \$2,128,500,000, to remain available until
14 September 30, 2029; of which \$20,000,000 shall be de-
15 rived from the Oil Spill Liability Trust Fund to carry out
16 the purposes of section 1012(a)(5) of the Oil Pollution Act
17 of 1990 (33 U.S.C. 2712(a)(5)).

18 RESEARCH AND DEVELOPMENT

19 For necessary expenses of the Coast Guard for re-
20 search and development; and for maintenance, rehabilita-
21 tion, lease, and operation of facilities and equipment;
22 \$6,763,000, to remain available until September 30, 2027,
23 of which \$500,000 shall be derived from the Oil Spill Li-
24 ability Trust Fund to carry out the purposes of section
25 1012(a)(5) of the Oil Pollution Act of 1990 (33 U.S.C.

1 2712(a)(5)): *Provided*, That there may be credited to and
2 used for the purposes of this appropriation funds received
3 from State and local governments, other public authori-
4 ties, private sources, and foreign countries for expenses
5 incurred for research, development, testing, and evalua-
6 tion.

7 RETIRED PAY

8 For retired pay, including the payment of obligations
9 otherwise chargeable to lapsed appropriations for this pur-
10 pose, payments under the Retired Serviceman's Family
11 Protection and Survivor Benefits Plans, payment for ca-
12 reer status bonuses, payment of continuation pay under
13 section 356 of title 37, United States Code, concurrent
14 receipts, combat-related special compensation, and pay-
15 ments for medical care of retired personnel and their de-
16 pendants under chapter 55 of title 10, United States Code,
17 \$1,210,840,000, to remain available until expended.

18 UNITED STATES SECRET SERVICE

19 OPERATIONS AND SUPPORT

20 For necessary expenses of the United States Secret
21 Service for operations and support, including purchase of
22 not to exceed 652 vehicles for police-type use; hire of pas-
23 senger motor vehicles; purchase of motorcycles made in
24 the United States; hire of aircraft; rental of buildings in
25 the District of Columbia; fencing, lighting, guard booths,

1 and other facilities on private or other property not in
2 Government ownership or control, as may be necessary to
3 perform protective functions; conduct of and participation
4 in firearms matches; presentation of awards; conduct of
5 behavioral research in support of protective intelligence
6 and operations; payment in advance for commercial ac-
7 commodations as may be necessary to perform protective
8 functions; and payment, without regard to section 5702
9 of title 5, United States Code, of subsistence expenses of
10 employees who are on protective missions, whether at or
11 away from their duty stations; \$3,017,524,000; of which
12 \$80,041,000 shall remain available until September 30,
13 2026, and of which \$6,000,000 shall be for a grant for
14 activities related to investigations of missing and exploited
15 children; and of which up to \$24,000,000 may be for cal-
16 endar year 2024 premium pay in excess of the annual
17 equivalent of the limitation on the rate of pay contained
18 in section 5547(a) of title 5, United States Code, pursuant
19 to section 2 of the Overtime Pay for Protective Services
20 Act of 2016 (5 U.S.C. 5547 note), as last amended by
21 Public Law 118–38: *Provided*, That not to exceed \$19,125
22 shall be for official reception and representation expenses:
23 *Provided further*, That not to exceed \$100,000 shall be to
24 provide technical assistance and equipment to foreign law

1 enforcement organizations in criminal investigations with-
2 in the jurisdiction of the United States Secret Service.

3 PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

4 For necessary expenses of the United States Secret
5 Service for procurement, construction, and improvements,
6 \$138,336,000, of which \$53,436,000 shall remain avail-
7 able until September 30, 2027, and of which \$84,900,000
8 shall remain available until September 30, 2029.

9 RESEARCH AND DEVELOPMENT

10 For necessary expenses of the United States Secret
11 Service for research and development, \$2,250,000, to re-
12 main available until September 30, 2026.

13 ADMINISTRATIVE PROVISIONS

14 SEC. 201. Section 201 of the Department of Home-
15 land Security Appropriations Act, 2018 (division F of
16 Public Law 115–141), related to overtime compensation
17 limitations, shall apply with respect to funds made avail-
18 able in this Act in the same manner as such section ap-
19 plied to funds made available in that Act, except that “fis-
20 cal year 2025” shall be substituted for “fiscal year 2018”.

21 SEC. 202. Funding made available under the head-
22 ings “U.S. Customs and Border Protection—Operations
23 and Support” and “U.S. Customs and Border Protec-
24 tion—Procurement, Construction, and Improvements”
25 shall be available for customs expenses when necessary to

1 maintain operations and prevent adverse personnel actions
2 in Puerto Rico and the U.S. Virgin Islands, in addition
3 to funding provided by sections 740 and 1406i of title 48,
4 United States Code.

5 SEC. 203. As authorized by section 601(b) of the
6 United States-Colombia Trade Promotion Agreement Im-
7 plementation Act (Public Law 112–42), fees collected
8 from passengers arriving from Canada, Mexico, or an ad-
9 jacent island pursuant to section 13031(a)(5) of the Con-
10 solidated Omnibus Budget Reconciliation Act of 1985 (19
11 U.S.C. 58c(a)(5)) shall be available until expended.

12 SEC. 204. (a) For an additional amount for “U.S.
13 Customs and Border Protection—Operations and Sup-
14 port”, \$31,000,000, to remain available until expended,
15 to be reduced by amounts collected and credited to this
16 appropriation in fiscal year 2025 from amounts authorized
17 to be collected by section 286(i) of the Immigration and
18 Nationality Act (8 U.S.C. 1356(i)), section 10412 of the
19 Farm Security and Rural Investment Act of 2002 (7
20 U.S.C. 8311), and section 817 of the Trade Facilitation
21 and Trade Enforcement Act of 2015 (Public Law 114–
22 125), or other such authorizing language.

23 (b) To the extent that amounts realized from such
24 collections exceed \$31,000,000, those amounts in excess

1 of \$31,000,000 shall be credited to this appropriation, to
2 remain available until expended.

3 SEC. 205. None of the funds made available in this
4 Act for U.S. Customs and Border Protection may be used
5 to prevent an individual not in the business of importing
6 a prescription drug (within the meaning of section 801(g)
7 of the Federal Food, Drug, and Cosmetic Act) from im-
8 porting a prescription drug from Canada that complies
9 with the Federal Food, Drug, and Cosmetic Act: *Provided*,
10 That this section shall apply only to individuals trans-
11 porting on their person a personal-use quantity of the pre-
12 scription drug, not to exceed a 90-day supply: *Provided*
13 *further*, That the prescription drug may not be—

14 (1) a controlled substance, as defined in section
15 102 of the Controlled Substances Act (21 U.S.C.
16 802); or

17 (2) a biological product, as defined in section
18 351 of the Public Health Service Act (42 U.S.C.
19 262).

20 SEC. 206. (a) Notwithstanding any other provision
21 of law, none of the funds provided in this or any other
22 Act shall be used to approve a waiver of the navigation
23 and vessel-inspection laws pursuant to section 501(b) of
24 title 46, United States Code, for the transportation of
25 crude oil distributed from and to the Strategic Petroleum

1 Reserve until the Secretary of Homeland Security, after
2 consultation with the Secretaries of the Departments of
3 Energy and Transportation and representatives from the
4 United States flag maritime industry, takes adequate
5 measures to ensure the use of United States flag vessels.

6 (b) The Secretary shall notify the Committees on Ap-
7 propriations of the House of Representatives and the Sen-
8 ate, the Committee on Transportation and Infrastructure
9 of the House of Representatives, and the Committee on
10 Commerce, Science, and Transportation of the Senate
11 within 2 business days of any request for waivers of navi-
12 gation and vessel-inspection laws pursuant to section
13 501(b) of title 46, United States Code, with respect to
14 such transportation, and the disposition of such requests.

15 SEC. 207. (a) Beginning on the date of enactment
16 of this Act, the Secretary of Homeland Security shall
17 not—

18 (1) establish, collect, or otherwise impose any
19 new border crossing fee on individuals crossing the
20 Southern border or the Northern border at a land
21 port of entry; or

22 (2) conduct any study relating to the imposition
23 of a border crossing fee.

24 (b) In this section, the term “border crossing fee”
25 means a fee that every pedestrian, cyclist, and driver and

1 passenger of a private motor vehicle is required to pay
2 for the privilege of crossing the Southern border or the
3 Northern border at a land port of entry.

4 SEC. 208. (a) Not later than 90 days after the date
5 of enactment of this Act, the Commissioner of U.S. Cus-
6 toms and Border Protection shall submit an expenditure
7 plan for any amounts made available for “U.S. Customs
8 and Border Protection—Procurement, Construction, and
9 Improvements” in this Act and prior Acts to the Commit-
10 tees on Appropriations of the House of Representatives
11 and the Senate.

12 (b) No such amounts provided in this Act may be
13 obligated prior to the submission of such plan.

14 SEC. 209. Section 211 of the Department of Home-
15 land Security Appropriations Act, 2021 (division F of
16 Public Law 116–260), prohibiting the use of funds for the
17 construction of fencing in certain areas, shall apply with
18 respect to funds made available in this Act in the same
19 manner as such section applied to funds made available
20 in that Act.

21 SEC. 210. (a) Funds made available in this Act may
22 be used to alter operations within the National Targeting
23 Center of U.S. Customs and Border Protection.

24 (b) None of the funds provided by this Act, provided
25 by previous appropriations Acts that remain available for

1 obligation or expenditure in fiscal year 2025, or provided
2 from any accounts in the Treasury of the United States
3 derived by the collection of fees available to the compo-
4 nents funded by this Act, may be used to reduce antici-
5 pated or planned vetting operations at existing locations
6 unless specifically authorized by a statute enacted after
7 the date of enactment of this Act.

8 SEC. 211. (a) Of the total amount made available
9 under “U.S. Customs and Border Protection—Procure-
10 ment, Construction, and Improvements”, \$1,390,338,000
11 shall be available only as follows:

12 (1) \$600,000,000 for the acquisition and de-
13 ployment of physical barriers;

14 (2) \$300,000,000 for the acquisition and de-
15 ployment of border security technologies;

16 (3) \$305,000,000 for trade and travel assets
17 and infrastructure;

18 (4) \$23,654,000 for facility construction and
19 improvements;

20 (5) \$131,419,000 for integrated operations as-
21 sets and infrastructure; and

22 (6) \$30,265,000 for mission support and infra-
23 structure.

24 (b) None of the funds allocated for pedestrian phys-
25 ical barriers may be made available for any purpose other

1 than the construction of steel bollard pedestrian barrier
2 built at least 18 to 30 feet in effective height and aug-
3 mented with anti-climb and anti-dig features.

4 (c) None of the funds allocated for pedestrian phys-
5 ical barriers may be made available for any purpose other
6 than construction of pedestrian barriers consistent with
7 the description in subsection (b) at locations identified in
8 the Border Security Improvement Plan submitted to Con-
9 gress on August 1, 2020.

10 (d) The Commissioner of U.S. Customs and Border
11 Protection may reprioritize the construction of physical
12 barriers outlined in the Border Security Improvement
13 Plan and, with prior approval of the Committees on Ap-
14 propriations of the House of Representatives and the Sen-
15 ate, add additional miles of pedestrian physical barriers
16 where no such barriers exist, prioritized by operational re-
17 quirements developed in coordination with U.S. Border
18 Patrol leadership.

19 (e) The Secretary of Homeland Security shall begin
20 to obligate amounts for physical barrier construction no
21 later than 120 days after the date of enactment of this
22 Act.

23 (f) For purposes of this section, the term “effective
24 height” refers to the height above the level of the adjacent
25 terrain features.

1 SEC. 212. None of the funds appropriated or other-
2 wise made available by this Act may be obligated, ex-
3 pended, or transferred to another Federal agency, board,
4 or commission to be used to dismantle, demolish, remove,
5 or damage existing United States-Mexico physical barriers
6 at any location where such barriers have been constructed
7 as of the date of enactment of this Act unless such barrier
8 is simultaneously being repaired or replaced.

9 SEC. 213. None of the funds appropriated or other-
10 wise made available by this Act may be made available
11 to utilize the U.S. Customs and Border Protection CBP
12 One Application, or any successor application, to facilitate
13 the parole of any alien into the United States.

14 SEC. 214. None of the funds appropriated or other-
15 wise made available by this Act may be made available
16 to implement, administer, or otherwise carry out the poli-
17 cies described in the directive issued by the Acting Com-
18 missioner of U.S. Customs and Border Protection on Jan-
19 uary 10, 2023, entitled “Emergency Driving and Vehic-
20 ular Pursuits”.

21 SEC. 215. None of the funds appropriated or other-
22 wise made available by this Act may be made available
23 to admit an alien into the United States at a port of entry
24 on an F or M visa if the college, university, or other insti-
25 tution of higher learning that the student will attend is

1 not accredited by a nationally recognized accrediting agen-
2 cy or association recognized by the Secretary of Education
3 pursuant to part H of title IV of the Higher Education
4 Act of 1965 (20 U.S.C. 1099a et seq.).

5 SEC. 216. None of the funds appropriated or other-
6 wise made available by this Act may be made available
7 to parole into the Commonwealth of the Northern Mariana
8 Islands, for the purpose of temporary visit for business
9 or pleasure without a visa, an alien who is a national of
10 the People’s Republic of China.

11 SEC. 217. (a) None of the funds appropriated or oth-
12 erwise made available by this Act may be used by U.S.
13 Customs and Border Protection to admit into the United
14 States any aerosol-dispensing unmanned aircraft system
15 produced or manufactured in a foreign adversary country.

16 (b) The term “foreign adversary country” means a
17 country specified in section 4872(d)(2) of title 10, United
18 States Code.

19 SEC. 218. None of the funds appropriated or other-
20 wise made available by this Act may be made available
21 to reduce participation in or substantively diminish the
22 delegation of law enforcement authority authorized under
23 section 287(g) of the Immigration and Nationality Act (8
24 U.S.C. 1357(g)), except as provided in section 219 of this
25 Act.

1 SEC. 219. None of the funds provided under the
2 heading “U.S. Immigration and Customs Enforcement—
3 Operations and Support” may be used to continue a dele-
4 gation of law enforcement authority authorized under sec-
5 tion 287(g) of the Immigration and Nationality Act (8
6 U.S.C. 1357(g)) if the Department of Homeland Security
7 Inspector General determines that the terms of the agree-
8 ment governing the delegation of authority have been ma-
9 terially violated.

10 SEC. 220. (a) None of the funds provided under the
11 heading “U.S. Immigration and Customs Enforcement—
12 Operations and Support” may be used to continue any
13 contract for the provision of detention services if the two
14 most recent overall performance evaluations received by
15 the contracted facility are less than “adequate” or the
16 equivalent median score in any subsequent performance
17 evaluation system.

18 (b) The performance evaluations referenced in sub-
19 section (a) shall be conducted by the U.S. Immigration
20 and Customs Enforcement Office of Professional Respon-
21 sibility.

22 SEC. 221. Without regard to the limitation as to time
23 and condition of section 503(d) of this Act, the Secretary
24 may reprogram within and transfer funds to “U.S. Immi-
25 gration and Customs Enforcement—Operations and Sup-

1 port” as necessary to ensure the detention of aliens
2 prioritized for removal.

3 SEC. 222. The reports required to be submitted under
4 section 216 of the Department of Homeland Security Ap-
5 propriations Act, 2021 (division F of Public Law 116–
6 260) shall continue to be submitted semimonthly and each
7 matter required to be included in such reports by such
8 section 216 shall apply in the same manner and to the
9 same extent during the period described in such section
10 216.

11 SEC. 223. The terms and conditions of section 217
12 of the Department of Homeland Security Appropriations
13 Act, 2020 (division D of Public Law 116–93) shall apply
14 to this Act.

15 SEC. 224. None of the funds appropriated or other-
16 wise made available by this Act may be made available
17 to implement, administer, or otherwise carry out the ac-
18 tivities and policies described in the memorandum issued
19 by the Secretary of Homeland Security on September 30,
20 2021, entitled “Guidelines for the Enforcement of Civil
21 Immigration Law”, or described in the memorandum
22 issued by Kerry Doyle, Immigration and Customs En-
23 forcement Principal Legal Advisor on April 3, 2022, enti-
24 tled “Guidance to OPLA Attorneys Regarding the En-
25 forcement of Civil Immigration Laws and the Exercise of

1 Prosecutorial Discretion”, or any successor or similar
2 memorandum or policy.

3 SEC. 225. (a) None of the funds appropriated or oth-
4 erwise made available by this Act may be made available
5 to transport aliens unlawfully present in, paroled into, or
6 inadmissible to the United States into the interior of the
7 United States for purposes other than enforcement of the
8 immigration laws (as such term is defined in section 101
9 of the Immigration and Nationality Act (8 U.S.C. 1101)).

10 (b) The limitation under subsection (a) shall not
11 apply with respect to amounts made available to transport
12 unaccompanied alien children (as such term is defined in
13 section 462 of the Homeland Security Act of 2002 (6
14 U.S.C. 279)).

15 SEC. 226. (a) None of the funds appropriated or oth-
16 erwise made available by this Act for “U.S. Immigration
17 and Customs Enforcement” may be used to pay for or
18 facilitate an abortion, except where the life of the mother
19 would be endangered if the fetus would be carried to term,
20 or in the case of rape or incest.

21 (b) None of the funds appropriated or otherwise
22 made available by this Act for “U.S. Immigration and
23 Customs Enforcement” may be used to require any person
24 to perform, or facilitate in any way the performance of,
25 any abortion.

1 SEC. 227. None of the funds appropriated or other-
2 wise made available by this Act may be made available
3 to administer hormone therapy medication or perform or
4 facilitate any surgery for any person in custody of U.S.
5 Immigration and Customs Enforcement for the purpose
6 of gender-affirming care.

7 SEC. 228. The Secretary of Homeland Security shall
8 allocate amounts appropriated or otherwise made available
9 under the heading “U.S. Immigration and Customs En-
10 forcement—Operations and Support” by this Act in order
11 to—

12 (1) prioritize detention by using such amounts
13 to ensure that the average daily population of de-
14 tainees is maintained at the full capacity at all de-
15 tention facilities funded by this Act throughout the
16 fiscal year; and

17 (2) ensure that every alien on the non-detained
18 docket is enrolled into the Alternatives to Detention
19 Program with mandatory GPS monitoring through-
20 out the duration of all applicable immigration pro-
21 ceedings (including any appeals) and until removal,
22 if ordered removed.

23 SEC. 229. Not later than 45 days after the date of
24 enactment of this Act, the Chief Financial Officer of U.S.
25 Immigration and Customs Enforcement shall submit to

1 the Committees on Appropriations of the House of Rep-
2 resentatives and the Senate an obligation plan for
3 amounts made available in this Act for “U.S. Immigration
4 and Customs Enforcement”, delineated by level II pro-
5 gram, project, and activity.

6 SEC. 230. None of the funds provided under the
7 heading “U.S. Immigration and Customs Enforcement—
8 Operations and Support” may be made available to de-
9 velop or administer a physical identification card for pur-
10 poses of alien identification, verification of immigration
11 status, or immigration portal access.

12 SEC. 231. None of the funds provided under the
13 heading “U.S. Immigration and Customs Enforcement—
14 Operations and Support” may be made available to de-
15 velop, pilot, administer, or otherwise implement standards
16 for management of the non-detained alien population or
17 for the Alternatives to Detention Program beyond those
18 incorporated in the Alternatives to Detention Handbook,
19 issued on August 16, 2017.

20 SEC. 232. None of the funds provided under the
21 heading “U.S. Immigration and Customs Enforcement—
22 Operations and Support” may be made available to imple-
23 ment, administer, or otherwise carry out the activities,
24 policies, and guidelines described in the memorandum
25 issued by the Secretary of Homeland Security on October

1 27, 2021, entitled “Guidelines for Enforcement Actions in
2 or Near Protected Areas”.

3 SEC. 233. No law of any State or political subdivision
4 thereof pertaining to a minimum rate of compensation or
5 any other condition of employment shall apply in the case
6 of any person held in Federal custody pursuant to the im-
7 migration laws (as such term is defined in section 101 of
8 the Immigration and Nationality Act (8 U.S.C.1101)).

9 SEC. 234. (a) Members of the United States House
10 of Representatives and the United States Senate, includ-
11 ing the leadership; the heads of Federal agencies and com-
12 missions, including the Secretary, Deputy Secretary,
13 Under Secretaries, and Assistant Secretaries of the De-
14 partment of Homeland Security; the United States Attor-
15 ney General, Deputy Attorney General, Assistant Attor-
16 neys General, and the United States Attorneys; and senior
17 members of the Executive Office of the President, includ-
18 ing the Director of the Office of Management and Budget,
19 shall not be exempt from Federal passenger and baggage
20 screening.

21 (b) None of the funds made available in this or any
22 other Act, including prior Acts, or provided from any ac-
23 counts in the Treasury of the United States derived by
24 the collection of fees available to the components funded
25 by this Act may be used to carry out legislation altering

1 the applicability of the screening requirements outlined in
2 subsection (a).

3 SEC. 235. Notwithstanding section 44923 of title 49,
4 United States Code, for fiscal year 2025, any funds in
5 the Aviation Security Capital Fund established by section
6 44923(h) of title 49, United States Code, may be used
7 for the procurement and installation of explosives detec-
8 tion systems or for the issuance of other transaction agree-
9 ments for the purpose of funding projects described in sec-
10 tion 44923(a) of such title.

11 SEC. 236. Not later than 45 days after the submis-
12 sion of the President’s budget proposal, the Administrator
13 of the Transportation Security Administration shall sub-
14 mit to the Committees on Appropriations and Homeland
15 Security of the House of Representatives and the Commit-
16 tees on Appropriations and Commerce, Science, and
17 Transportation of the Senate a single report that fulfills
18 the following requirements:

19 (1) a Capital Investment Plan, both constrained
20 and unconstrained, that includes a plan for contin-
21 uous and sustained capital investment in new, and
22 the replacement of aged, transportation security
23 equipment;

24 (2) the 5-year technology investment plan as re-
25 quired by section 1611 of title XVI of the Homeland

1 Security Act of 2002, as amended by section 3 of
2 the Transportation Security Acquisition Reform Act
3 (Public Law 113–245); and

4 (3) the Advanced Integrated Passenger Screen-
5 ing Technologies report as required by the Senate
6 Report accompanying the Department of Homeland
7 Security Appropriations Act, 2019 (Senate Report
8 115–283).

9 SEC. 237. (a) None of the funds made available by
10 this Act under the heading “Coast Guard—Operations
11 and Support” shall be for expenses incurred for rec-
12 reational vessels under section 12114 of title 46, United
13 States Code, except to the extent fees are collected from
14 owners of yachts and credited to the appropriation made
15 available by this Act under the heading “Coast Guard—
16 Operations and Support”.

17 (b) To the extent such fees are insufficient to pay
18 expenses of recreational vessel documentation under such
19 section 12114, and there is a backlog of recreational vessel
20 applications, personnel performing non-recreational vessel
21 documentation functions under subchapter II of chapter
22 121 of title 46, United States Code, may perform docu-
23 mentation under section 12114.

24 SEC. 238. Notwithstanding any other provision of
25 law, the Commandant of the Coast Guard shall submit

1 to the Committees on Appropriations of the House of Rep-
2 resentatives and the Senate a future-years capital invest-
3 ment plan as described in the second proviso under the
4 heading “Coast Guard—Acquisition, Construction, and
5 Improvements” in the Department of Homeland Security
6 Appropriations Act, 2015 (Public Law 114–4), which shall
7 be subject to the requirements in the third and fourth pro-
8 visos under such heading.

9 SEC. 239. None of the funds in this Act shall be used
10 to reduce the Coast Guard’s legacy Operations Systems
11 Center mission or its government-employed or contract
12 staff levels.

13 SEC. 240. None of the funds appropriated by this Act
14 may be used to conduct, or to implement the results of,
15 a competition under Office of Management and Budget
16 Circular A–76 for activities performed with respect to the
17 Coast Guard National Vessel Documentation Center.

18 SEC. 241. Funds made available in this Act may be
19 used to alter operations within the Civil Engineering Pro-
20 gram of the Coast Guard nationwide, including civil engi-
21 neering units, facilities design and construction centers,
22 maintenance and logistics commands, and the Coast
23 Guard Academy, except that none of the funds provided
24 in this Act may be used to reduce operations within any

1 civil engineering unit unless specifically authorized by a
2 statute enacted after the date of enactment of this Act.

3 SEC. 242. Amounts deposited into the Coast Guard
4 Housing Fund in fiscal year 2025 shall be available until
5 expended to carry out the purposes of section 2946 of title
6 14, United States Code, and shall be in addition to funds
7 otherwise available for such purposes.

8 SEC. 243. None of the funds appropriated or other-
9 wise made available by this Act may be made available
10 to implement, administer, or enforce a Final Rule on
11 “Shipping Safety Fairways Along the Atlantic Coast” (89
12 Fed. Reg. 3587) until the Coast Guard submits a report
13 to the Committees on Appropriations of the House of Rep-
14 resentatives and the Senate on the effect of offshore wind
15 turbines on marine navigation radar, especially with re-
16 gard to search and rescue interference.

17 SEC. 244. None of the funds appropriated or other-
18 wise made available by this Act may be made available
19 to implement, administer, or enforce a Final Rule on
20 “Amendments to the North Atlantic Right Whale Vessel
21 Strike Reduction Rule” (87 Fed. Reg. 46920) or any re-
22 strictions on vessel speed for the Rice’s whale that were
23 not in place prior to January 20, 2021.

24 SEC. 245. The United States Secret Service is au-
25 thorized to obligate funds in anticipation of reimburse-

1 ments from executive agencies, as defined in section 105
2 of title 5, United States Code, for personnel receiving
3 training sponsored by the James J. Rowley Training Cen-
4 ter, except that total obligations at the end of the fiscal
5 year shall not exceed total budgetary resources available
6 under the heading “United States Secret Service—Oper-
7 ations and Support” at the end of the fiscal year.

8 SEC. 246. (a) None of the funds made available to
9 the United States Secret Service by this Act or by previous
10 appropriations Acts may be made available for the protec-
11 tion of the head of a Federal agency other than the Sec-
12 retary of Homeland Security.

13 (b) The Director of the United States Secret Service
14 may enter into agreements to provide such protection on
15 a fully reimbursable basis.

16 SEC. 247. For purposes of section 503(a)(3) of this
17 Act, up to \$15,000,000 may be reprogrammed within
18 “United States Secret Service—Operations and Support”.

19 SEC. 248. Funding made available in this Act for
20 “United States Secret Service—Operations and Support”
21 is available for travel of United States Secret Service em-
22 ployees on protective missions without regard to the limi-
23 tations on such expenditures in this or any other Act if
24 the Director of the United States Secret Service or a des-
25 ignee notifies the Committees on Appropriations of the

1 House of Representatives and the Senate 10 or more days
2 in advance, or as early as practicable, prior to such ex-
3 penditures.

4 SEC. 249. None of the funds provided under the
5 heading “U.S. Immigration and Customs Enforcement—
6 Operations and Support” may be made available to termi-
7 nate or substantively reduce the terms or conditions of a
8 contract for the provision of detention services with any
9 facility that was previously or is currently designated as
10 a Family Residential Center.

11 SEC. 250. (a) The Secretary of the department in
12 which the Coast Guard is operating shall ensure that, dur-
13 ing the fiscal year funded by this Act, the imposition or
14 collection of cost-sharing for certain services is prohibited
15 as follows—

16 (1) Notwithstanding subparagraphs (A), (B),
17 and (C) of section 1074g(a)(6) of title 10, United
18 States Code, cost-sharing may not be imposed or
19 collected with respect to any eligible covered bene-
20 ficiary for any prescription contraceptive on the uni-
21 form formulary provided through a retail pharmacy
22 described in section 1074g(a)(2)(E)(ii) of such title
23 or through the national mail-order pharmacy pro-
24 gram of the TRICARE Program.

1 (2) Notwithstanding any provision under sec-
2 tion 1075 of title 10, United States Code, cost-shar-
3 ing may not be imposed or collected for a covered
4 service that is provided by a network provider under
5 the TRICARE program to an eligible covered bene-
6 ficiary under such section.

7 (3) Notwithstanding subsections (a), (b), and
8 (c) of section 1075a of title 10, United States Code,
9 cost-sharing may not be imposed or collected for a
10 covered service that is provided under TRICARE
11 Prime to an eligible covered beneficiary under such
12 section.

13 (b) In this section—

14 (1) The term “covered service” means any method
15 of contraception approved, granted, or cleared by the Food
16 and Drug Administration, any contraceptive care (includ-
17 ing with respect to insertion, removal, and follow up), any
18 sterilization procedure, or any patient education or coun-
19 seling service provided in connection with any such meth-
20 od, care, or procedure.

21 (2) The term “eligible covered beneficiary” means an
22 eligible covered beneficiary (as such term is used in section
23 1074g of title 10, United States Code) on the basis of
24 being—

25 (A) a member of the Coast Guard; or

1 (B) a dependent of such a member.

2 (3) The terms “TRICARE Program” and
3 “TRICARE Prime” have the meaning given such terms
4 in section 1072 of title 10, United States Code.

5 (c) This section shall become effective 30 days after
6 the date of enactment of this Act.

7 SEC. 251. (a) Contraceptive supplies of up to 365
8 days shall be covered for any eligible covered beneficiary
9 to obtain, including in a single fill or refill, at the option
10 of such beneficiary, the total days of supply (not to exceed
11 a 365-day supply) for a contraceptive on the uniform for-
12 mulary provided through a military treatment facility
13 pharmacy, retail pharmacy described in section
14 1074g(a)(2)(E)(ii) of such title, or through the national
15 mail-order pharmacy program of the TRICARE Program.

16 (b) Beginning not later than 90 days after the imple-
17 mentation of coverage under subsection (a), the Secretary
18 of the department in which the Coast Guard is operating
19 shall conduct such outreach activities as are necessary to
20 inform health care providers and individuals who are en-
21 rolled in the TRICARE program of such coverage and the
22 requirements to receive such coverage.

23 (c) In this section—

24 (1) The term “covered Armed Force” means
25 the Coast Guard.

1 (2) The term “eligible covered beneficiary”
 2 means an eligible covered beneficiary as such term
 3 is used in section 1074g of title 10, United States
 4 Code who is—

5 (A) a member of a covered Armed Force
 6 serving on active duty; or

7 (B) a dependent of a member described in
 8 subparagraph (A).

9 (3) The terms “TRICARE Program” and
 10 “TRICARE Prime” have the meaning given such
 11 terms in section 1072 of title 10, United States
 12 Code.

13 (d) This section shall become effective 180 days after
 14 the date of enactment of this Act.

15 TITLE III
 16 PROTECTION, PREPAREDNESS, RESPONSE, AND
 17 RECOVERY

18 CYBERSECURITY AND INFRASTRUCTURE SECURITY

19 AGENCY

20 OPERATIONS AND SUPPORT

21 For necessary expenses of the Cybersecurity and In-
 22 frastructure Security Agency for operations and support,
 23 \$2,437,285,000, of which \$23,698,000 shall remain avail-
 24 able until September 30, 2026: *Provided*, That not to ex-

ceed \$3,825 shall be for official reception and representation expenses.

PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

For necessary expenses of the Cybersecurity and Infrastructure Security Agency for procurement, construction, and improvements, \$493,572,000, to remain available until September 30, 2027.

FEDERAL EMERGENCY MANAGEMENT AGENCY

OPERATIONS AND SUPPORT

For necessary expenses of the Federal Emergency Management Agency for operations and support, \$1,551,093,000: *Provided*, That not to exceed \$2,250 shall be for official reception and representation expenses.

PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

For necessary expenses of the Federal Emergency Management Agency for procurement, construction, and improvements, \$94,827,000, of which \$38,590,000 shall remain available until September 30, 2027, and of which \$56,237,000 shall remain available until September 30, 2029.

FEDERAL ASSISTANCE

For activities of the Federal Emergency Management Agency for Federal assistance through grants, contracts, cooperative agreements, and other activities, \$3,758,992,810, which shall be allocated as follows:

1 (1) \$520,000,000 for the State Homeland Secu-
2 rity Grant Program under section 2004 of the
3 Homeland Security Act of 2002 (6 U.S.C. 605), of
4 which \$90,000,000 shall be for Operation
5 Stonegarden and \$15,000,000 shall be for Tribal
6 Homeland Security Grants under section 2005 of
7 the Homeland Security Act of 2002 (6 U.S.C. 606):
8 *Provided*, That notwithstanding subsection (c)(4) of
9 such section 2004, for fiscal year 2025, the Com-
10 monwealth of Puerto Rico shall make available to
11 local and tribal governments amounts provided to
12 the Commonwealth of Puerto Rico under this para-
13 graph in accordance with subsection (c)(1) of such
14 section 2004.

15 (2) \$615,000,000 for the Urban Area Security
16 Initiative under section 2003 of the Homeland Secu-
17 rity Act of 2002 (6 U.S.C. 604).

18 (3) \$305,000,000 for the Nonprofit Security
19 Grant Program under section 2009 of the Homeland
20 Security Act of 2002 (6 U.S.C. 609a), of which
21 \$152,500,000 is for eligible recipients located in
22 high-risk urban areas that receive funding under
23 section 2003 of such Act and \$152,500,000 is for el-
24 igible recipients that are located outside such areas:
25 *Provided*, That eligible recipients are those described

1 in section 2009(b) of such Act (6 U.S.C. 609a(b))
2 or are an otherwise eligible recipient at risk of a ter-
3 rorist or other extremist attack.

4 (4) \$105,000,000 for Public Transportation Se-
5 curity Assistance, Railroad Security Assistance, and
6 Over-the-Road Bus Security Assistance under sec-
7 tions 1406, 1513, and 1532 of the Implementing
8 Recommendations of the 9/11 Commission Act of
9 2007 (6 U.S.C. 1135, 1163, and 1182), of which
10 \$10,000,000 shall be for Amtrak security and
11 \$2,000,000 shall be for Over-the-Road Bus Security:
12 *Provided*, That such public transportation security
13 assistance shall be provided directly to public trans-
14 portation agencies.

15 (5) \$100,000,000 for Port Security Grants in
16 accordance with section 70107 of title 46, United
17 States Code.

18 (6) \$720,000,000, to remain available until
19 September 30, 2026, of which \$360,000,000 shall be
20 for Assistance to Firefighter Grants and
21 \$360,000,000 shall be for Staffing for Adequate
22 Fire and Emergency Response Grants under sec-
23 tions 33 and 34 respectively of the Federal Fire Pre-
24 vention and Control Act of 1974 (15 U.S.C. 2229
25 and 2229a).

1 (7) \$355,000,000 for emergency management
2 performance grants under the National Flood Insur-
3 ance Act of 1968 (42 U.S.C. 4001 et seq.), the Rob-
4 ert T. Stafford Disaster Relief and Emergency As-
5 sistance Act (42 U.S.C. 5121), the Earthquake Haz-
6 ards Reduction Act of 1977 (42 U.S.C. 7701), sec-
7 tion 762 of title 6, United States Code, and Reorga-
8 nization Plan No. 3 of 1978 (5 U.S.C. App.).

9 (8) \$312,750,000 for necessary expenses for
10 Flood Hazard Mapping and Risk Analysis, in addi-
11 tion to and to supplement any other sums appro-
12 priated under the National Flood Insurance Fund,
13 and such additional sums as may be provided by
14 States or other political subdivisions for cost-shared
15 mapping activities under section 1360(f)(2) of the
16 National Flood Insurance Act of 1968 (42 U.S.C.
17 4101(f)(2)), to remain available until expended.

18 (9) \$12,000,000 for Regional Catastrophic Pre-
19 paredness Grants.

20 (10) \$130,000,000 for the emergency food and
21 shelter program under title III of the McKinney-
22 Vento Homeless Assistance Act (42 U.S.C. 11331),
23 to remain available until September 30, 2026: *Pro-*
24 *vided*, That not to exceed 3.5 percent shall be for
25 total administrative costs.

1 (11) \$40,000,000 for the Next Generation
2 Warning System.

3 (12) \$221,343,810 for Community Project
4 Funding grants, which shall be for the purposes,
5 and the amounts, specified in the table entitled
6 “Homeland Security—Community Project Funding”
7 in the report accompanying this Act, of which—

8 (A) \$81,771,896, in addition to amounts
9 otherwise made available for such purpose, is
10 for emergency operations center grants under
11 section 614 of the Robert T. Stafford Disaster
12 Relief and Emergency Assistance Act (42
13 U.S.C. 5196c); and

14 (B) \$139,571,914, in addition to amounts
15 otherwise made available for such purpose, is
16 for pre-disaster mitigation grants under section
17 203 of the Robert T. Stafford Disaster Relief
18 and Emergency Assistance Act (42 U.S.C.
19 5133(e), notwithstanding subsections (f), (g),
20 and (l) of that section (42 U.S.C. 5133(f), (g),
21 (l)).

22 (13) \$322,899,000 to sustain current oper-
23 ations for training, exercises, technical assistance,
24 and other programs.

1 DISASTER RELIEF FUND

2 For necessary expenses in carrying out the Robert
3 T. Stafford Disaster Relief and Emergency Assistance Act
4 (42 U.S.C. 5121 et seq.), \$22,741,000,000, to remain
5 available until expended: *Provided*, That such amount
6 shall be for major disasters declared pursuant to the Rob-
7 ert T. Stafford Disaster Relief and Emergency Assistance
8 Act (42 U.S.C. 5121 et seq.) and is designated by the
9 Congress as being for disaster relief pursuant to section
10 251(b)(2)(D) of the Balanced Budget and Emergency
11 Deficit Control Act of 1985.

12 NATIONAL FLOOD INSURANCE FUND

13 For activities under the National Flood Insurance
14 Act of 1968 (42 U.S.C. 4001 et seq.), the Flood Disaster
15 Protection Act of 1973 (42 U.S.C. 4001 et seq.), the
16 Biggert-Waters Flood Insurance Reform Act of 2012
17 (Public Law 112–141, 126 Stat. 916), and the Home-
18 owner Flood Insurance Affordability Act of 2014 (Public
19 Law 113–89; 128 Stat. 1020), \$239,785,000, to remain
20 available until September 30, 2026, which shall be derived
21 from offsetting amounts collected under section 1308(d)
22 of the National Flood Insurance Act of 1968 (42 U.S.C.
23 4015(d)); of which \$14,578,000 shall be available for mis-
24 sion support associated with flood management; and of
25 which \$225,207,000 shall be available for flood plain man-

1 agement and flood mapping: *Provided*, That any addi-
2 tional fees collected pursuant to section 1308(d) of the
3 National Flood Insurance Act of 1968 (42 U.S.C.
4 4015(d)) shall be credited as offsetting collections to this
5 account, to be available for flood plain management and
6 flood mapping: *Provided further*, That in fiscal year 2025,
7 no funds shall be available from the National Flood Insur-
8 ance Fund under section 1310 of the National Flood In-
9 surance Act of 1968 (42 U.S.C. 4017) in excess of—

10 (1) \$240,262,000 for operating expenses and
11 salaries and expenses associated with flood insurance
12 operations;

13 (2) \$1,382,000,000 for commissions and taxes
14 of agents;

15 (3) such sums as are necessary for interest on
16 Treasury borrowings; and

17 (4) \$175,000,000, which shall remain available
18 until expended, for flood mitigation actions and for
19 flood mitigation assistance under section 1366 of the
20 National Flood Insurance Act of 1968 (42 U.S.C.
21 4104c), notwithstanding sections 1366(e) and
22 1310(a)(7) of such Act (42 U.S.C. 4104c(e), 4017):

23 *Provided further*, That the amounts collected under section
24 102 of the Flood Disaster Protection Act of 1973 (42
25 U.S.C. 4012a) and section 1366(e) of the National Flood

1 Insurance Act of 1968 (42 U.S.C. 4104c(e)), shall be de-
 2 posited in the National Flood Insurance Fund to supple-
 3 ment other amounts specified as available for section 1366
 4 of the National Flood Insurance Act of 1968, notwith-
 5 standing section 102(f)(8), section 1366(e) of the National
 6 Flood Insurance Act of 1968, and paragraphs (1) through
 7 (3) of section 1367(b) of such Act (42 U.S.C. 4012a(f)(8),
 8 4104c(e), 4104d(b)(1)–(3)): *Provided further*, That total
 9 administrative costs shall not exceed 4 percent of the total
 10 appropriation: *Provided further*, That up to \$6,102,000 is
 11 available to carry out section 24 of the Homeowner Flood
 12 Insurance Affordability Act of 2014 (42 U.S.C. 4033).

13 ADMINISTRATIVE PROVISIONS

14 (INCLUDING TRANSFERS OF FUNDS)

15 SEC. 301. Funds made available under the heading
 16 “Cybersecurity and Infrastructure Security Agency—Op-
 17 erations and Support” may be made available for the nec-
 18 essary expenses of procuring or providing access to cyber-
 19 security threat feeds for branches, agencies, independent
 20 agencies, corporations, establishments, and instrumental-
 21 ities of the Federal Government of the United States,
 22 state, local, tribal, and territorial entities, fusion centers
 23 as described in section 210A of the Homeland Security
 24 Act (6 U.S.C. 124h), and Information Sharing and Anal-
 25 ysis Organizations.

1 SEC. 302. (a) Notwithstanding section 2008(a)(12)
2 of the Homeland Security Act of 2002 (6 U.S.C.
3 609(a)(12)) or any other provision of law, not more than
4 5 percent of the amount of a grant made available in para-
5 graphs (1) through (5) under “Federal Emergency Man-
6 agement Agency—Federal Assistance”, may be used by
7 the recipient for expenses directly related to administra-
8 tion of the grant.

9 (b) The authority provided in subsection (a) shall also
10 apply to a state recipient for the administration of a grant
11 under such paragraph (3).

12 SEC. 303. Applications for grants under the heading
13 “Federal Emergency Management Agency—Federal As-
14 sistance”, for paragraphs (1) through (5), shall be made
15 available to eligible applicants not later than 60 days after
16 the date of enactment of this Act, eligible applicants shall
17 submit applications not later than 80 days after the grant
18 announcement, and the Administrator of the Federal
19 Emergency Management Agency shall act within 65 days
20 after the receipt of an application.

21 SEC. 304. (a) Under the heading “Federal Emer-
22 gency Management Agency—Federal Assistance”, for
23 grants under paragraphs (1) through (5) and (9), the Ad-
24 ministrator of the Federal Emergency Management Agen-
25 cy shall brief the Committees on Appropriations of the

1 House of Representatives and the Senate 5 full business
2 days in advance of announcing publicly the intention of
3 making an award.

4 (b) If any such public announcement is made before
5 5 full business days have elapsed following such briefing,
6 \$1,000,000 of amounts appropriated by this Act for “Fed-
7 eral Emergency Management Agency—Operations and
8 Support” shall be rescinded.

9 SEC. 305. Under the heading “Federal Emergency
10 Management Agency—Federal Assistance”, for grants
11 under paragraphs (1) and (2), the installation of commu-
12 nications towers is not considered construction of a build-
13 ing or other physical facility.

14 SEC. 306. The reporting requirements in paragraphs
15 (1) and (2) under the heading “Federal Emergency Man-
16 agement Agency—Disaster Relief Fund” in the Depart-
17 ment of Homeland Security Appropriations Act, 2015
18 (Public Law 114–4), related to reporting on the Disaster
19 Relief Fund, shall be applied in fiscal year 2025 with re-
20 spect to budget year 2026 and current fiscal year 2025,
21 respectively—

22 (1) in paragraph (1) by substituting “fiscal
23 year 2026” for “fiscal year 2016”; and

24 (2) in paragraph (2) by inserting “business”
25 after “fifth”.

1 SEC. 307. In making grants under the heading “Fed-
2 eral Emergency Management Agency—Federal Assist-
3 ance”, for Staffing for Adequate Fire and Emergency Re-
4 sponse grants, the Administrator of the Federal Emer-
5 gency Management Agency may grant waivers from the
6 requirements in subsections (a)(1)(A), (a)(1)(B),
7 (a)(1)(E), (c)(1), (c)(2), and (c)(4) of section 34 of the
8 Federal Fire Prevention and Control Act of 1974 (15
9 U.S.C. 2229a).

10 SEC. 308. (a) The aggregate charges assessed during
11 fiscal year 2025, as authorized in title III of the Depart-
12 ments of Veterans Affairs and Housing and Urban Devel-
13 opment, and Independent Agencies Appropriations Act,
14 1999 (42 U.S.C. 5196e), shall not be less than 100 per-
15 cent of the amounts anticipated by the Department of
16 Homeland Security to be necessary for its Radiological
17 Emergency Preparedness Program for the next fiscal year.

18 (b) The methodology for assessment and collection of
19 fees shall be fair and equitable and shall reflect costs of
20 providing such services, including administrative costs of
21 collecting such fees.

22 (c) Such fees shall be deposited in a Radiological
23 Emergency Preparedness Program account as offsetting
24 collections and will become available for authorized pur-

1 poses on October 1, 2025, and remain available until ex-
2 pended.

3 SEC. 309. In making grants under the heading “Fed-
4 eral Emergency Management Agency—Federal Assist-
5 ance”, for Assistance to Firefighter Grants, the Adminis-
6 trator of the Federal Emergency Management Agency
7 may waive subsection (k) of section 33 of the Federal Fire
8 Prevention and Control Act of 1974 (15 U.S.C. 2229).

9 SEC. 310. Any unobligated balances of funds appro-
10 priated in any prior Act for activities funded by the Na-
11 tional Predisaster Mitigation Fund under section 203 of
12 the Robert T. Stafford Disaster Relief and Emergency As-
13 sistance Act (42 U.S.C. 5133), as in effect on the day
14 before the date of enactment of section 1234 of division
15 D of Public Law 115–254, may be transferred to and
16 merged with funds set aside pursuant to subsection (i)(1)
17 of section 203 of the Robert T. Stafford Disaster Relief
18 and Emergency Assistance Act (42 U.S.C. 5133), as in
19 effect on the date of the enactment of this section.

20 SEC. 311. Any unobligated balances of funds appro-
21 priated under the heading “Federal Emergency Manage-
22 ment Agency—Flood Hazard Mapping and Risk Analysis
23 Program” in any prior Act may be transferred to and
24 merged with funds appropriated under the heading “Fed-
25 eral Emergency Management Agency—Federal Assist-

1 ance'' for necessary expenses for Flood Hazard Mapping
 2 and Risk Analysis: *Provided*, That funds transferred pur-
 3 suant to this section shall be in addition to and supple-
 4 ment any other sums appropriated for such purposes
 5 under the National Flood Insurance Fund and such addi-
 6 tional sums as may be provided by States or other political
 7 subdivisions for cost-shared mapping activities under sec-
 8 tion 1360(f)(2) of the National Flood Insurance Act of
 9 1968 (42 U.S.C. 4101(f)(2)), to remain available until ex-
 10 ended.

11 TITLE IV

12 RESEARCH, DEVELOPMENT, TRAINING, AND

13 SERVICES

14 U.S. CITIZENSHIP AND IMMIGRATION SERVICES

15 OPERATIONS AND SUPPORT

16 For necessary expenses of U.S. Citizenship and Im-
 17 migration Services for operations and support of the E-
 18 Verify Program, \$112,431,000: *Provided*, That such
 19 amounts shall be in addition to any other amounts made
 20 available for such purposes, and shall not be construed to
 21 require any reduction of any fee described in section
 22 286(m) of the Immigration and Nationality Act (8 U.S.C.
 23 1356(m)).

1 FEDERAL LAW ENFORCEMENT TRAINING CENTERS
2 OPERATIONS AND SUPPORT

3 For necessary expenses of the Federal Law Enforce-
4 ment Training Centers for operations and support, includ-
5 ing the purchase of not to exceed 117 vehicles for police-
6 type use and hire of passenger motor vehicles, and services
7 as authorized by section 3109 of title 5, United States
8 Code, \$360,752,000, of which \$66,665,000 shall remain
9 available until September 30, 2026: *Provided*, That not
10 to exceed \$7,180 shall be for official reception and rep-
11 resentation expenses.

12 PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

13 For necessary expenses of the Federal Law Enforce-
14 ment Training Centers for procurement, construction, and
15 improvements, \$6,000,000, to remain available until Sep-
16 tember 30, 2029, for acquisition of necessary additional
17 real property and facilities, construction and ongoing
18 maintenance, facility improvements and related expenses
19 of the Federal Law Enforcement Training Centers.

20 SCIENCE AND TECHNOLOGY DIRECTORATE

21 OPERATIONS AND SUPPORT

22 For necessary expenses of the Science and Tech-
23 nology Directorate for operations and support, including
24 the purchase or lease of not to exceed 5 vehicles,
25 \$375,238,000, of which \$206,442,000 shall remain avail-

1 able until September 30, 2026: *Provided*, That not to ex-
2 ceed \$10,000 shall be for official reception and representa-
3 tion expenses.

4 PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

5 For necessary expenses of the Science and Tech-
6 nology Directorate for procurement, construction, and im-
7 provements, \$30,000,000, to remain available until Sep-
8 tember 30, 2029.

9 RESEARCH AND DEVELOPMENT

10 For necessary expenses of the Science and Tech-
11 nology Directorate for research and development,
12 \$339,353,000, to remain available until September 30,
13 2027.

14 COUNTERING WEAPONS OF MASS DESTRUCTION OFFICE

15 OPERATIONS AND SUPPORT

16 For necessary expenses of the Countering Weapons
17 of Mass Destruction Office for operations and support,
18 \$159,252,000, of which \$50,446,000 shall remain avail-
19 able until September 30, 2026: *Provided*, That not to ex-
20 ceed \$2,250 shall be for official reception and representa-
21 tion expenses.

22 PROCUREMENT, CONSTRUCTION, AND IMPROVEMENTS

23 For necessary expenses of the Countering Weapons
24 of Mass Destruction Office for procurement, construction,

1 and improvements, \$33,397,000, to remain available until
2 September 30, 2027.

3 RESEARCH AND DEVELOPMENT

4 For necessary expenses of the Countering Weapons
5 of Mass Destruction Office for research and development,
6 \$110,938,000, to remain available until September 30,
7 2027.

8 FEDERAL ASSISTANCE

9 For necessary expenses of the Countering Weapons
10 of Mass Destruction Office for Federal assistance through
11 grants, contracts, cooperative agreements, and other ac-
12 tivities, \$57,726,000, to remain available until September
13 30, 2027.

14 ADMINISTRATIVE PROVISIONS

15 SEC. 401. (a) Notwithstanding any other provision
16 of law, funds otherwise made available to U.S. Citizenship
17 and Immigration Services may be used to acquire, operate,
18 equip, and dispose of up to 5 vehicles, for replacement
19 only, for areas where the Administrator of General Serv-
20 ices does not provide vehicles for lease.

21 (b) The Director of U.S. Citizenship and Immigration
22 Services may authorize employees who are assigned to
23 those areas to use such vehicles to travel between the em-
24 ployees' residences and places of employment.

1 SEC. 402. None of the funds appropriated by this Act
2 may be used to process or approve a competition under
3 Office of Management and Budget Circular A–76 for serv-
4 ices provided by employees (including employees serving
5 on a temporary or term basis) of U.S. Citizenship and Im-
6 migration Services of the Department of Homeland Secu-
7 rity who are known as Immigration Information Officers,
8 Immigration Service Analysts, Contact Representatives,
9 Investigative Assistants, or Immigration Services Officers.

10 SEC. 403. Notwithstanding any other provision of
11 law, any Federal funds made available to U.S. Citizenship
12 and Immigration Services may be used for the collection
13 and use of biometrics taken at a U.S. Citizenship and Im-
14 migration Services Application Support Center that is
15 overseen virtually by U.S. Citizenship and Immigration
16 Services personnel using appropriate technology.

17 SEC. 404. None of the funds appropriated or other-
18 wise made available by this Act may be made available
19 to implement, administer, or enforce the rule entitled
20 “Procedures or Credible Fear Screening and Consider-
21 ation of Asylum, Withholding of Removal, and CAT Pro-
22 tection Claims by Asylum Officers” (87 Fed. Reg. 18078).

23 SEC. 405. None of the funds appropriated or other-
24 wise made available by this Act may be made available
25 to issue any employment authorization document or simi-

1 lar document to any alien whose application for asylum
2 in the United States has been denied, or who is convicted
3 of a Federal or State crime while his or her application
4 for asylum in the United States is pending.

5 SEC. 406. Notwithstanding the numerical limitation
6 set forth in section 214(g)(1)(B) of the Immigration and
7 Nationality Act (8 U.S.C. 1184(g)(1)(B)), the Secretary
8 of Homeland Security, after consultation with the Sec-
9 retary of Labor, and upon determining that the needs of
10 American businesses cannot be satisfied during fiscal year
11 2025 with United States workers who are willing, quali-
12 fied, and able to perform temporary nonagricultural labor,
13 shall increase the total number of visas available to quali-
14 fying aliens under section 101(a)(15)(H)(ii)(b) of such
15 Act (8 U.S.C. 1101(a)(15)(H)(ii)(b)) in such fiscal year
16 above such limitation by the highest number of H-2B non-
17 immigrants who participated in the H-2B returning work-
18 er program in any fiscal year in which returning workers
19 were exempt from such numerical limitation.

20 SEC. 407. Notwithstanding section 286(n) of the Im-
21 migration and Nationality Act (8 U.S.C. 1356(n)), the Di-
22 rector of U.S. Citizenship and Immigration Services may
23 use not more than \$2,500 of the amounts deposited in
24 the Immigration Examinations Fee Account for official re-
25 ception and representation expenses in fiscal year 2025.

1 SEC. 408. No Federal funds made available to the
2 Department of Homeland Security may be used for the
3 consideration of a petition for a nonimmigrant visa under
4 section 101(a)(15)(H)(i)(b) of the Immigration and Na-
5 tionality Act, if the petitioner is any entity identified under
6 section 1260H of the William M. (Mac) Thornberry Na-
7 tional Defense Authorization Act for Fiscal Year 2021
8 (Public Law 116–283) or any subsidiary of such entity.

9 SEC. 409. The Director of the Federal Law Enforce-
10 ment Training Centers is authorized to distribute funds
11 to Federal law enforcement agencies for expenses incurred
12 participating in training accreditation.

13 SEC. 410. The Federal Law Enforcement Training
14 Accreditation Board, including representatives from the
15 Federal law enforcement community and non-Federal ac-
16 creditation experts involved in law enforcement training,
17 shall lead the Federal law enforcement training accredita-
18 tion process to continue the implementation of measuring
19 and assessing the quality and effectiveness of Federal law
20 enforcement training programs, facilities, and instructors.

21 SEC. 411. (a) The Director of the Federal Law En-
22 forcement Training Centers may accept transfers to its
23 “Procurement, Construction, and Improvements” account
24 from Government agencies requesting the construction of

1 special use facilities, as authorized by the Economy Act
2 (31 U.S.C. 1535(b)).

3 (b) The Federal Law Enforcement Training Centers
4 shall maintain administrative control and ownership upon
5 completion of such facilities.

6 SEC. 412. The functions of the Federal Law Enforce-
7 ment Training Centers instructor staff shall be classified
8 as inherently governmental for purposes of the Federal
9 Activities Inventory Reform Act of 1998 (31 U.S.C. 501
10 note).

11 SEC. 413. In fiscal year 2025, nonimmigrants shall
12 be admitted to the United States under section
13 101(a)(15)(H)(ii)(a) of the Immigration and Nationality
14 Act (8 U.S.C. 1101(a)(15)(H)(ii)(a)) to perform agricul-
15 tural labor or services, without regard to whether such
16 labor is, or services are, of a temporary or seasonal nature.

17 SEC. 414. None of the funds made available in this
18 Act may be made available to implement, administer, or
19 enforce the “Asylum Program Fee” from the Final Rule
20 entitled “U.S. Citizenship and Immigration Services Fee
21 Schedule and Changes to Certain Other Immigration Ben-
22 efit Request Requirements” (88 Fed. Reg. 6194).

TITLE V

GENERAL PROVISIONS

(INCLUDING TRANSFERS AND RESCISSIONS OF FUNDS)

SEC. 501. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 502. Subject to the requirements of section 503 of this Act, the unexpended balances of prior appropriations provided for activities in this Act may be transferred to appropriation accounts for such activities established pursuant to this Act, may be merged with funds in the applicable established accounts, and thereafter may be accounted for as one fund for the same time period as originally enacted.

SEC. 503. (a) None of the funds provided by this Act, provided by previous appropriations Acts to the components in or transferred to the Department of Homeland Security that remain available for obligation or expenditure in fiscal year 2025, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the components funded by this Act, shall be available for obligation or expenditure through a reprogramming of funds that—

(1) creates or eliminates a program, project, or activity, or increases funds for any program, project,

1 or activity for which funds have been denied or re-
2 stricted by the Congress;

3 (2) contracts out any function or activity pres-
4 ently performed by Federal employees or any new
5 function or activity proposed to be performed by
6 Federal employees in the President's budget pro-
7 posal for fiscal year 2025 for the Department of
8 Homeland Security;

9 (3) augments funding for existing programs,
10 projects, or activities in excess of \$5,000,000 or 10
11 percent, whichever is less;

12 (4) reduces funding for any program, project,
13 or activity, or numbers of personnel, by 10 percent
14 or more; or

15 (5) results from any general savings from a re-
16 duction in personnel that would result in a change
17 in funding levels for programs, projects, or activities
18 as approved by the Congress.

19 (b) Subsection (a) shall not apply if the Committees
20 on Appropriations of the House of Representatives and the
21 Senate are notified at least 30 days in advance of such
22 reprogramming.

23 (c) Up to 5 percent of any appropriation made avail-
24 able for the current fiscal year for the Department of
25 Homeland Security by this Act or provided by previous

1 appropriations Acts may be transferred between such ap-
2 propriations if the Committees on Appropriations of the
3 House of Representatives and the Senate are notified at
4 least 30 days in advance of such transfer, but no such
5 appropriation, except as otherwise specifically provided,
6 shall be increased by more than 10 percent by such trans-
7 fer.

8 (d) Notwithstanding subsections (a), (b), and (c), no
9 funds shall be reprogrammed within or transferred be-
10 tween appropriations—

11 (1) based upon an initial notification provided
12 after June 15, except in extraordinary circumstances
13 that imminently threaten the safety of human life or
14 the protection of property;

15 (2) to increase or decrease funding for grant
16 programs; or

17 (3) to create a program, project, or activity
18 pursuant to subsection (a)(1), including any new
19 function or requirement within any program, project,
20 or activity, not approved by Congress in the consid-
21 eration of the enactment of this Act.

22 (e) The notification thresholds and procedures set
23 forth in subsections (a), (b), (c), and (d) shall apply to
24 any use of deobligated balances of funds provided in pre-
25 vious Department of Homeland Security Appropriations

1 Acts that remain available for obligation in the current
2 year.

3 (f) Notwithstanding subsection (c), the Secretary of
4 Homeland Security may transfer to the fund established
5 by 8 U.S.C. 1101 note, up to \$20,000,000 from appro-
6 priations available to the Department of Homeland Secu-
7 rity: *Provided*, That the Secretary shall notify the Com-
8 mittees on Appropriations of the House of Representatives
9 and the Senate at least 5 days in advance of such transfer.

10 SEC. 504. (a) Section 504 of the Department of
11 Homeland Security Appropriations Act, 2017 (division F
12 of Public Law 115–31), related to the operations of a
13 working capital fund, shall apply with respect to funds
14 made available in this Act in the same manner as such
15 section applied to funds made available in that Act.

16 (b) Funds from such working capital fund may be
17 obligated and expended in anticipation of reimbursements
18 from components of the Department of Homeland Secu-
19 rity.

20 SEC. 505. (a) Except as otherwise specifically pro-
21 vided by law, not to exceed 50 percent of unobligated bal-
22 ances remaining available at the end of fiscal year 2025,
23 as recorded in the financial records at the time of a re-
24 programming notification, but not later than June 15,
25 2026, from appropriations for “Operations and Support”

1 for fiscal year 2025 in this Act shall remain available
2 through September 30, 2026, in the account and for the
3 purposes for which the appropriations were provided.

4 (b) Prior to the obligation of such funds, a notifica-
5 tion shall be submitted to the Committees on Appropria-
6 tions of the House of Representatives and the Senate in
7 accordance with section 503 of this Act.

8 SEC. 506. (a) Funds made available by this Act for
9 intelligence activities are deemed to be specifically author-
10 ized by the Congress for purposes of section 504 of the
11 National Security Act of 1947 (50 U.S.C. 414) during fis-
12 cal year 2025 until the enactment of an Act authorizing
13 intelligence activities for fiscal year 2025.

14 (b) Amounts described in subsection (a) made avail-
15 able for “Intelligence, Analysis, and Situational Aware-
16 ness—Operations and Support” that exceed the amounts
17 in such authorization for such account shall be transferred
18 to and merged with amounts made available under the
19 heading “Management Directorate—Operations and Sup-
20 port”.

21 (c) Prior to the obligation of any funds transferred
22 under subsection (b), the Management Directorate shall
23 brief the Committees on Appropriations of the House of
24 Representatives and the Senate on a plan for the use of
25 such funds.

1 SEC. 507. (a) The Secretary of Homeland Security,
2 or the designee of the Secretary, shall notify the Commit-
3 tees on Appropriations of the House of Representatives
4 and the Senate at least 3 full business days in advance
5 of—

6 (1) making or awarding a grant allocation or
7 grant in excess of \$1,000,000;

8 (2) making or awarding a contract, other trans-
9 action agreement, or task or delivery order on a
10 multiple award contract, or to issue a letter of intent
11 totaling in excess of \$4,000,000;

12 (3) awarding a task or delivery order requiring
13 an obligation of funds in an amount greater than
14 \$10,000,000 from multi-year Department of Home-
15 land Security funds;

16 (4) making a sole-source grant award; or

17 (5) announcing publicly the intention to make
18 or award items under paragraph (1), (2), (3), or (4),
19 including a contract covered by the Federal Acquisi-
20 tion Regulation.

21 (b) If the Secretary of Homeland Security determines
22 that compliance with this section would pose a substantial
23 risk to human life, health, or safety, an award may be
24 made without notification, and the Secretary shall notify
25 the Committees on Appropriations of the House of Rep-

1 representatives and the Senate not later than 5 full business
2 days after such an award is made or letter issued.

3 (c) A notification under this section—

4 (1) may not involve funds that are not available
5 for obligation; and

6 (2) shall include the amount of the award; the
7 fiscal year for which the funds for the award were
8 appropriated; the type of contract; and the account
9 from which the funds are being drawn.

10 SEC. 508. Notwithstanding any other provision of
11 law, no agency shall purchase, construct, or lease any ad-
12 ditional facilities, except within or contiguous to existing
13 locations, to be used for the purpose of conducting Federal
14 law enforcement training without advance notification to
15 the Committees on Appropriations of the House of Rep-
16 resentatives and the Senate, except that the Federal Law
17 Enforcement Training Centers is authorized to obtain the
18 temporary use of additional facilities by lease, contract,
19 or other agreement for training that cannot be accommo-
20 dated in existing Centers' facilities.

21 SEC. 509. None of the funds appropriated or other-
22 wise made available by this Act may be used for expenses
23 for any construction, repair, alteration, or acquisition
24 project for which a prospectus otherwise required under
25 chapter 33 of title 40, United States Code, has not been

1 approved, except that necessary funds may be expended
2 for each project for required expenses for the development
3 of a proposed prospectus.

4 SEC. 510. Sections 522 and 530 of the Department
5 of Homeland Security Appropriations Act, 2008 (division
6 E of Public Law 110–161; 121 Stat. 2073 and 2074) shall
7 apply with respect to funds made available in this Act in
8 the same manner as such sections applied to funds made
9 available in that Act.

10 SEC. 511. (a) None of the funds made available in
11 this Act may be used in contravention of the applicable
12 provisions of the Buy American Act.

13 (b) For purposes of subsection (a), the term “Buy
14 American Act” means chapter 83 of title 41, United
15 States Code.

16 SEC. 512. None of the funds made available in this
17 Act may be used to amend the oath of allegiance required
18 by section 337 of the Immigration and Nationality Act
19 (8 U.S.C. 1448).

20 SEC. 513. None of the funds provided or otherwise
21 made available in this Act shall be available to carry out
22 section 872 of the Homeland Security Act of 2002 (6
23 U.S.C. 452) unless explicitly authorized by the Congress.

1 SEC. 514. None of the funds made available in this
2 Act may be used for planning, testing, piloting, or devel-
3 oping a national identification card.

4 SEC. 515. Any official that is required by this Act
5 to report or to certify to the Committees on Appropria-
6 tions of the House of Representatives and the Senate may
7 not delegate such authority to perform that act unless spe-
8 cifically authorized herein.

9 SEC. 516. None of the funds made available in this
10 Act may be used for first-class travel by the employees
11 of agencies funded by this Act in contravention of sections
12 301–10.122 through 301–10.124 of title 41, Code of Fed-
13 eral Regulations.

14 SEC. 517. None of the funds made available in this
15 Act may be used to employ workers described in section
16 274A(h)(3) of the Immigration and Nationality Act (8
17 U.S.C. 1324a(h)(3)).

18 SEC. 518. Notwithstanding any other provision of
19 this Act, none of the funds appropriated or otherwise
20 made available by this Act may be used to pay award or
21 incentive fees for contractor performance that has been
22 judged to be below satisfactory performance or perform-
23 ance that does not meet the basic requirements of a con-
24 tract.

1 SEC. 519. (a) None of the funds made available in
2 this Act may be used to maintain or establish a computer
3 network unless such network blocks the viewing,
4 downloading, and exchanging of pornography.

5 (b) Nothing in subsection (a) shall limit the use of
6 funds necessary for any Federal, State, tribal, territorial,
7 or local law enforcement agency or any other entity car-
8 rying out criminal investigations, prosecution, or adjudica-
9 tion activities.

10 SEC. 520. None of the funds made available in this
11 Act may be used by a Federal law enforcement officer to
12 facilitate the transfer of an operable firearm to an indi-
13 vidual if the Federal law enforcement officer knows or sus-
14 pects that the individual is an agent of a drug cartel unless
15 law enforcement personnel of the United States continu-
16 ously monitor or control the firearm at all times.

17 SEC. 521. (a) None of the funds made available in
18 this Act may be used to pay for the travel to or attendance
19 of more than 50 employees of a single component of the
20 Department of Homeland Security, who are stationed in
21 the United States, at a single international conference un-
22 less the Secretary of Homeland Security, or a designee,
23 determines that such attendance is in the national interest
24 and notifies the Committees on Appropriations of the
25 House of Representatives and the Senate within at least

1 10 days of that determination and the basis for that deter-
2 mination.

3 (b) For purposes of this section the term “inter-
4 national conference” shall mean a conference occurring
5 outside of the United States attended by representatives
6 of the United States Government and of foreign govern-
7 ments, international organizations, or nongovernmental
8 organizations.

9 (c) The total cost to the Department of Homeland
10 Security of any such conference shall not exceed \$500,000.

11 (d) Employees who attend a conference virtually
12 without travel away from their permanent duty station
13 within the United States shall not be counted for purposes
14 of this section, and the prohibition contained in this sec-
15 tion shall not apply to payments for the costs of attend-
16 ance for such employees.

17 SEC. 522. None of the funds made available in this
18 Act may be used to reimburse any Federal department
19 or agency for its participation in a National Special Secu-
20 rity Event.

21 SEC. 523. (a) None of the funds made available to
22 the Department of Homeland Security by this or any other
23 Act may be obligated for the implementation of any struc-
24 tural pay reform or the introduction of any new position
25 classification that will affect more than 100 full-time posi-

1 tions or costs more than \$5,000,000 in a single year be-
2 fore the end of the 30-day period beginning on the date
3 on which the Secretary of Homeland Security submits to
4 Congress a notification that includes—

5 (1) the number of full-time positions affected by
6 such change;

7 (2) funding required for such change for the
8 current fiscal year and through the Future Years
9 Homeland Security Program;

10 (3) justification for such change; and

11 (4) for a structural pay reform, an analysis of
12 compensation alternatives to such change that were
13 considered by the Department.

14 (b) Subsection (a) shall not apply to such change if—

15 (1) it was proposed in the President’s budget
16 proposal for the fiscal year funded by this Act; and

17 (2) funds for such change have not been explic-
18 itly denied or restricted in this Act.

19 SEC. 524. (a) Any agency receiving funds made avail-
20 able in this Act shall, subject to subsections (b) and (c),
21 post on the public website of that agency any report re-
22 quired to be submitted by the Committees on Appropria-
23 tions of the House of Representatives and the Senate in
24 this Act, upon the determination by the head of the agency
25 that it shall serve the national interest.

1 (b) Subsection (a) shall not apply to a report if—

2 (1) the public posting of the report com-
3 promises homeland or national security; or

4 (2) the report contains proprietary information.

5 (c) The head of the agency posting such report shall
6 do so only after such report has been made available to
7 the Committees on Appropriations of the House of Rep-
8 resentatives and the Senate for not less than 45 days ex-
9 cept as otherwise specified in law.

10 SEC. 525. (a) Funding provided in this Act for “Op-
11 erations and Support” may be used for minor procure-
12 ment, construction, and improvements.

13 (b) For purposes of subsection (a), “minor” refers
14 to end items with a unit cost of \$250,000 or less for per-
15 sonal property, and \$2,000,000 or less for real property.

16 SEC. 526. The authority provided by section 532 of
17 the Department of Homeland Security Appropriations
18 Act, 2018 (Public Law 115–141) regarding primary and
19 secondary schooling of dependents shall continue in effect
20 during fiscal year 2025.

21 SEC. 527. (a) None of the funds appropriated or oth-
22 erwise made available to the Department of Homeland Se-
23 curity by this Act may be used to prevent any of the fol-
24 lowing persons from entering, for the purpose of con-
25 ducting oversight, any facility operated by or for the De-

1 partment of Homeland Security used to detain or other-
2 wise house aliens, or to make any temporary modification
3 at any such facility that in any way alters what is observed
4 by a visiting Member of Congress or such designated em-
5 ployee, compared to what would be observed in the absence
6 of such modification:

7 (1) A Member of Congress; and

8 (2) An employee of the United States House of
9 Representatives or the United States Senate des-
10 igned by such a Member for the purposes of this
11 section.

12 (b) Nothing in this section may be construed to re-
13 quire a Member of Congress to provide prior notice of the
14 intent to enter a facility described in subsection (a) for
15 the purpose of conducting oversight.

16 (c) With respect to individuals described in subsection
17 (a)(2), the Department of Homeland Security may require
18 that a request be made at least 24 hours in advance of
19 an intent to enter a facility described in subsection (a).

20 SEC. 528. (a) Except as provided in subsection (b),
21 none of the funds made available in this Act may be used
22 to place restraints on a woman in the custody of the De-
23 partment of Homeland Security (including during trans-
24 port, in a detention facility, or at an outside medical facil-
25 ity) who is pregnant or in post-delivery recuperation.

1 (b) Subsection (a) shall not apply with respect to a
2 pregnant woman if—

3 (1) an appropriate official of the Department of
4 Homeland Security makes an individualized deter-
5 mination that the woman—

6 (A) is a serious flight risk, and such risk
7 cannot be prevented by other means; or

8 (B) poses an immediate and serious threat
9 to harm herself or others that cannot be pre-
10 vented by other means; or

11 (2) a medical professional responsible for the
12 care of the pregnant woman determines that the use
13 of therapeutic restraints is appropriate for the med-
14 ical safety of the woman.

15 (c) If a pregnant woman is restrained pursuant to
16 subsection (b), only the safest and least restrictive re-
17 straints, as determined by the appropriate medical profes-
18 sional treating the woman, may be used. In no case may
19 restraints be used on a woman who is in active labor or
20 delivery, and in no case may a pregnant woman be re-
21 strained in a face-down position with four-point restraints,
22 on her back, or in a restraint belt that constricts the area
23 of the pregnancy. A pregnant woman who is immobilized
24 by restraints shall be positioned, to the maximum extent
25 feasible, on her left side.

1 SEC. 529. (a) None of the funds made available by
2 this Act may be used to destroy any document, recording,
3 or other record pertaining to any—

4 (1) death of;

5 (2) potential sexual assault or abuse per-
6 petrated against; or

7 (3) allegation of abuse, criminal activity, or dis-
8 ruption committed by an individual held in the cus-
9 tody of the Department of Homeland Security.

10 (b) The records referred to in subsection (a) shall be
11 made available, in accordance with applicable laws and
12 regulations, and Federal rules governing disclosure in liti-
13 gation, to an individual who has been charged with a
14 crime, been placed into segregation, or otherwise punished
15 as a result of an allegation described in paragraph (3),
16 upon the request of such individual.

17 SEC. 530. Section 519 of division F of Public Law
18 114–113, regarding a prohibition on funding for any posi-
19 tion designated as a Principal Federal Official, shall apply
20 with respect to any Federal funds in the same manner
21 as such section applied to funds made available in that
22 Act.

23 SEC. 531. (a) Not later than 10 days after the date
24 on which the budget of the President for a fiscal year is
25 submitted to Congress pursuant to section 1105(a) of title

1 31, United States Code, the Under Secretary for Manage-
2 ment of Homeland Security shall submit to the Commit-
3 tees on Appropriations of the House of Representatives
4 and the Senate a report on the unfunded priorities, for
5 the Department of Homeland Security and separately for
6 each departmental component, for which discretionary
7 funding would be classified as budget function 050.

8 (b) Each report under this section shall specify, for
9 each such unfunded priority—

10 (1) a summary description, including the objec-
11 tives to be achieved if such priority is funded
12 (whether in whole or in part);

13 (2) the description, including the objectives to
14 be achieved if such priority is funded (whether in
15 whole or in part);

16 (3) account information, including the following
17 (as applicable):

18 (A) appropriation account; and

19 (B) program, project, or activity name;

20 and

21 (4) the additional number of full-time or part-
22 time positions to be funded as part of such priority.

23 (c) In this section, the term “unfunded priority”, in
24 the case of a fiscal year, means a requirement that—

1 (1) is not funded in the budget referred to in
2 subsection (a);

3 (2) is necessary to fulfill a requirement associ-
4 ated with an operational or contingency plan for the
5 Department; and

6 (3) would have been recommended for funding
7 through the budget referred to in subsection (a) if—

8 (A) additional resources had been available
9 for the budget to fund the requirement;

10 (B) the requirement has emerged since the
11 budget was formulated; or

12 (C) the requirement is necessary to sustain
13 prior-year investments.

14 SEC. 532. (a) Not later than 10 days after a deter-
15 mination is made by the President to evaluate and initiate
16 protection under any authority for a former or retired
17 Government official or employee, or for an individual who,
18 during the duration of the directed protection, will become
19 a former or retired Government official or employee (re-
20 ferred to in this section as a “covered individual”), the
21 Secretary of Homeland Security shall submit a notifica-
22 tion to congressional leadership and the Committees on
23 Appropriations of the House of Representatives and the
24 Senate, the Committees on the Judiciary of the House of
25 Representatives and the Senate, the Committee on Home-

1 land Security of the House of Representatives, the Com-
2 mittee on Homeland Security and Governmental Affairs
3 of the Senate, and the Committee on Oversight and Re-
4 form of the House of Representatives (referred to in this
5 section as the “appropriate congressional committees”).

6 (b) Such notification may be submitted in classified
7 form, if necessary, and in consultation with the Director
8 of National Intelligence or the Director of the Federal Bu-
9 reau of Investigation, as appropriate, and shall include the
10 threat assessment, scope of the protection, and the antici-
11 pated cost and duration of such protection.

12 (c) Not later than 15 days before extending, or 30
13 days before terminating, protection for a covered indi-
14 vidual, the Secretary of Homeland Security shall submit
15 a notification regarding the extension or termination and
16 any change to the threat assessment to the congressional
17 leadership and the appropriate congressional committees.

18 (d) Not later than 45 days after the date of enact-
19 ment of this Act, and quarterly thereafter, the Secretary
20 shall submit a report to the congressional leadership and
21 the appropriate congressional committees, which may be
22 submitted in classified form, if necessary, detailing each
23 covered individual, and the scope and associated cost of
24 protection.

1 SEC. 533. (a) None of the funds provided to the De-
2 partment of Homeland Security in this or any prior Act
3 may be used by an agency to submit an initial project pro-
4 posal to the Technology Modernization Fund (as author-
5 ized by section 1078 of subtitle G of title X of the National
6 Defense Authorization Act for Fiscal Year 2018 (Public
7 Law 115–91)) unless, concurrent with the submission of
8 an initial project proposal to the Technology Moderniza-
9 tion Board, the head of the agency—

10 (1) notifies the Committees on Appropriations
11 of the House of Representatives and the Senate of
12 the proposed submission of the project proposal;

13 (2) submits to the Committees on Appropria-
14 tions a copy of the project proposal; and

15 (3) provides a detailed analysis of how the pro-
16 posed project funding would supplement or supplant
17 funding requested as part of the Department’s most
18 recent budget submission.

19 (b) None of the funds provided to the Department
20 of Homeland Security by the Technology Modernization
21 Fund shall be available for obligation until 15 days after
22 a report on such funds has been transmitted to the Com-
23 mittees on Appropriations of the House of Representatives
24 and the Senate.

1 (c) The report described in subsection (b) shall in-
2 clude—

3 (1) the full project proposal submitted to and
4 approved by the Fund’s Technology Modernization
5 Board;

6 (2) the finalized interagency agreement between
7 the Department and the Fund including the
8 project’s deliverables and repayment terms, as appli-
9 cable;

10 (3) a detailed analysis of how the project will
11 supplement or supplant existing funding available to
12 the Department for similar activities;

13 (4) a plan for how the Department will repay
14 the Fund, including specific planned funding
15 sources, as applicable; and

16 (5) other information as determined by the Sec-
17 retary.

18 SEC. 534. Within 60 days of any budget submission
19 for the Department of Homeland Security for fiscal year
20 2026 that assumes revenues or proposes a reduction from
21 the previous year based on user fees proposals that have
22 not been enacted into law prior to the submission of the
23 budget, the Secretary of Homeland Security shall provide
24 the Committees on Appropriations of the House of Rep-
25 resentatives and the Senate specific reductions in proposed

1 discretionary budget authority commensurate with the
2 revenues assumed in such proposals in the event that they
3 are not enacted prior to October 1, 2025.

4 SEC. 535. None of the funds made available by this
5 Act may be obligated or expended to implement the Arms
6 Trade Treaty until the Senate approves a resolution of
7 ratification for the Treaty.

8 SEC. 536. No Federal funds made available to the
9 Department of Homeland Security may be used to enter
10 into a procurement contract, memorandum of under-
11 standing, or cooperative agreement with, or make a grant
12 to, or provide a loan or guarantee to, any entity identified
13 under section 1260H of the William M. (Mac) Thornberry
14 National Defense Authorization Act for Fiscal Year 2021
15 (Public Law 116–283) or any subsidiary of such entity.

16 SEC. 537. None of the funds appropriated or other-
17 wise made available in this or any other Act may be used
18 to transfer, release, or assist in the transfer or release to
19 or within the United States, its territories, or possessions
20 Khalid Sheikh Mohammed or any other detainee who—

21 (1) is not a United States citizen or a member
22 of the Armed Forces of the United States; and

23 (2) is or was held on or after June 24, 2009,
24 at the United States Naval Station, Guantanamo
25 Bay, Cuba, by the Department of Defense.

1 SEC. 538. (a) The Secretary of Homeland Security
2 (in this section referred to as the “Secretary”) shall, on
3 a bimonthly basis beginning immediately after the date of
4 enactment of this Act, develop estimates of the number
5 of aliens anticipated to arrive at the southwest border of
6 the United States.

7 (b) The Secretary shall ensure that, at a minimum,
8 the estimates developed pursuant to subsection (a)—

9 (1) cover the current fiscal year and the fol-
10 lowing fiscal year;

11 (2) include a breakout by demographics, to in-
12 clude single adults, family units, and unaccompanied
13 children;

14 (3) undergo an independent validation and
15 verification review;

16 (4) are used to inform policy planning and
17 budgeting processes within the Department of
18 Homeland Security; and

19 (5) are included in the budget materials sub-
20 mitted to Congress for each fiscal year beginning
21 after the date of enactment of this Act and in sup-
22 port of—

23 (A) the President’s annual budget request
24 pursuant to section 1105 of title 31, United
25 States Code;

1 (B) any supplemental funding request sub-
2 mitted to Congress;

3 (C) any reprogramming and transfer noti-
4 fication pursuant to section 503 of this Act;
5 and

6 (D) such budget materials shall include—

7 (i) the most recent bimonthly esti-
8 mates developed pursuant to subsection
9 (a);

10 (ii) a description and quantification of
11 the estimates used to justify funding re-
12 quests for Department programs related to
13 border security, immigration enforcement,
14 and immigration services;

15 (iii) a description and quantification
16 of the anticipated workload and require-
17 ments resulting from such estimates; and

18 (iv) a confirmation as to whether the
19 budget requests for impacted agencies were
20 developed using the same estimates.

21 (c) The Secretary shall share the bimonthly estimates
22 developed pursuant to subsection (a) with the Secretary
23 of Health and Human Services, the Attorney General, the
24 Secretary of State, and the Committees on Appropriations
25 of the House of Representatives and the Senate.

1 (d) If the bimonthly estimates described in subsection
2 (b) are not provided for the purposes described, the re-
3 programming and transfer authority provided in section
4 503 of this Act shall be suspended until such time as the
5 required estimates are provided to the Committees on Ap-
6 propriations of the House of Representatives and the Sen-
7 ate.

8 SEC. 539. (a) Prior to the Secretary of Homeland Se-
9 curity requesting assistance from the Department of De-
10 fense for border security operations, the Secretary shall
11 ensure that an alternatives analysis and cost-benefit anal-
12 ysis is conducted before such request is made, which shall
13 include an examination of obtaining such support through
14 other means.

15 (b) Not later than 30 days after the date on which
16 a request for assistance is made, the Secretary of Home-
17 land Security shall submit to the Committees on Appro-
18 priations of the House of Representatives and the Senate
19 a report detailing the types of support requested, the alter-
20 natives analysis and cost-benefit analysis described in sub-
21 section (a), and the operational impact to Department of
22 Homeland Security operations of any Department of De-
23 fense border security support requested by the Secretary.

24 (c) Not later than 30 days after the date on which
25 a request made for assistance is granted and quarterly

1 thereafter through the duration of such assistance, the
2 Secretary of Homeland Security shall submit to the Com-
3 mittees on Appropriations of the House of Representatives
4 and the Senate, a report detailing the assistance provided
5 and the operational impacts to border security operations.

6 SEC. 540. Funds made available in this Act or any
7 other Act for Operations and Support may be used for
8 the necessary expenses of providing an employee emer-
9 gency back-up care program.

10 SEC. 541. (a) Not less than \$5,000,000 made avail-
11 able in this Act shall be transferred to “U.S. Immigration
12 and Customs Enforcement—Operations and Support” to
13 support and conduct necessary operations of the Blue
14 Campaign for fiscal year 2025.

15 (b) Prior to the obligation of funds made available
16 by subsection (a), notification shall be submitted to the
17 Committees on Appropriations of the House of Represent-
18 atives and the Senate.

19 SEC. 542. (a) None of the funds appropriated or oth-
20 erwise made available by this Act or any other Act shall
21 be used to execute an inspection of a detention facility that
22 is in a contractual agreement with U.S. Immigration and
23 Customs Enforcement for the provision of detention serv-
24 ices and that is subject to the terms, conditions, and
25 standards found within the National Detention Standards

1 for Non-Dedicated Facilities, as revised in 2019 for U.S.
2 Immigration and Customs Enforcement, except solely for
3 compliance with the terms, conditions, and standards
4 found within the National Detention Standards for Non-
5 Dedicated Facilities, as revised in 2019.

6 (b) Executions of inspections described in subsection
7 (a) shall not occur within six months of a previous inspec-
8 tion of such facility, except with respect to inspections exe-
9 cuted by the Office of Inspector General.

10 SEC. 543. None of the funds appropriated or other-
11 wise made available by this Act may be made available
12 to implement, administer, or enforce the rule entitled
13 “Circumvention of Lawful Pathways” (88 Fed. Reg.
14 11704).

15 SEC. 544. None of the funds appropriated or other-
16 wise made available by this Act may be made available
17 to establish or support the activities of a Disinformation
18 Governance Board at the Department of Homeland Secu-
19 rity, or any other similar entity carrying out activities re-
20 lating to disinformation in a similar manner or to a similar
21 extent to such a Board.

22 SEC. 545. None of the funds appropriated or other-
23 wise made available by this Act may be made available
24 to:

1 (a) classify or facilitate the classification of any com-
2 munications by a United States person as mis-, dis-, or
3 mal-information; or

4 (b) partner with or fund nonprofit or other organiza-
5 tions that pressure or recommend private companies to
6 censor lawful and constitutionally protected speech of
7 United States persons, including recommending the cen-
8 soring or removal of content on social media platforms.

9 (c) Any officer or employee of the Federal Govern-
10 ment whose salary is funded by this Act and who conducts
11 any activity described in (a) or (b) shall be removed from
12 the Federal service.

13 SEC. 546. None of the funds appropriated or other-
14 wise made available by this Act may be made available
15 to implement, administer, apply, enforce, or carry out the
16 Equity Action Plan of the Department of Homeland Secu-
17 rity, or Executive Order No. 13985 of January 20, 2021
18 (86 Fed. Reg. 7009, relating to advancing racial equity
19 and support for underserved communities through the fed-
20 eral government), Executive Order No. 14035 of June 25,
21 2021 (86 Fed. Reg. 34593, relating to diversity, equity,
22 inclusion, and accessibility in the federal workforce), Exec-
23 utive Order No. 14091 of February 16, 2023 (88 Fed.
24 Reg. 10825 relating to further advancing racial equity and
25 support for underserved communities through the federal

1 government) or any program, project, or activity that pro-
2 motes or advances Critical Race Theory or any concept
3 associated with Critical Race Theory.

4 SEC. 547. (a) In general.—Notwithstanding section
5 7 of title 1, United States Code, section 1738C of title
6 28, United States Code, or any other provision of law,
7 none of the funds provided by this Act, or previous appro-
8 priations Acts, shall be used in whole or in part to take
9 any discriminatory action against a person, wholly or par-
10 tially, on the basis that such person speaks, or acts, in
11 accordance with a sincerely held religious belief, or moral
12 conviction, that marriage is, or should be recognized as,
13 a union of one man and one woman.

14 (b) Discriminatory action defined.—As used in sub-
15 section (a), a discriminatory action means any action
16 taken by the Federal Government to—

17 (1) alter in any way the Federal tax treatment
18 of, or cause any tax, penalty, or payment to be as-
19 sessed against, or deny, delay, or revoke an exemp-
20 tion from taxation under section 501(a) of the Inter-
21 nal Revenue Code of 1986 of, any person referred to
22 in subsection (a);

23 (2) disallow a deduction for Federal tax pur-
24 poses of any charitable contribution made to or by
25 such person;

1 (3) withhold, reduce the amount or funding for,
2 exclude, terminate, or otherwise make unavailable or
3 deny, any Federal grant, contract, subcontract, co-
4 operative agreement, guarantee, loan, scholarship, li-
5 cense, certification, accreditation, employment, or
6 other similar position or status from or to such per-
7 son;

8 (4) withhold, reduce, exclude, terminate, or oth-
9 erwise make unavailable or deny, any entitlement or
10 benefit under a Federal benefit program, including
11 admission to, equal treatment in, or eligibility for a
12 degree from an educational program, from or to
13 such person; or

14 (5) withhold, reduce, exclude, terminate, or oth-
15 erwise make unavailable or deny access or an entitle-
16 ment to Federal property, facilities, educational in-
17 stitutions, speech fora (including traditional, limited,
18 and nonpublic fora), or charitable fundraising cam-
19 paigns from or to such person.

20 (c) Accreditation; Licensure; Certification.—The
21 Federal Government shall consider accredited, licensed, or
22 certified for purposes of Federal law any person that
23 would be accredited, licensed, or certified, respectively, for
24 such purposes but for a determination against such person
25 wholly or partially on the basis that the person speaks,

1 or acts, in accordance with a sincerely held religious belief
2 or moral conviction described in subsection (a).

3 SEC. 548. (a) None of the funds appropriated or oth-
4 erwise made available in this or any other Act may be used
5 to license, facilitate, coordinate, or otherwise allow officials
6 of a country designated as a state sponsor of terrorism
7 within the past three fiscal years, to, in their capacity as
8 an official, observe, tour, visit, or confer with the employ-
9 ees of the Department of Homeland Security.

10 (b) The term “state sponsor of terrorism” means a
11 country the government of which the Secretary of State
12 determines has repeatedly provided support for inter-
13 national terrorism pursuant to section 1754(c)(1)(A) of
14 the Export Control Reform Act of 2018 (50 U.S.C.
15 4813(c)(1)(A)); section 620A of the Foreign Assistance
16 Act of 1961 (22 U.S.C. 2371); section 40 of the Arms
17 Export Control Act (22 U.S.C. 2780); or any other provi-
18 sion of law.

19 SEC. 549. None of the funds made available by this
20 Act may be used to obligate or award funds to a political
21 subdivision of a State that—

22 (a) has in effect any law, policy, or procedure, wheth-
23 er written or communicated orally, in contravention of, or
24 which substantially limits compliance with, subsection (a)
25 or (b) of section 642 of the Illegal Immigration Reform

1 and Immigration Responsibility Act of 1996 (8 U.S.C.
2 1373); or

3 (b) has in effect any law, policy, or procedure, wheth-
4 er written or communicated orally, the result of which
5 hinders the federal government from enforcing the immi-
6 gration laws as defined by 8 U.S.C. 101(a)(17).

7 (RESCISSIONS OF FUNDS)

8 SEC. 550. Of the funds appropriated to the Depart-
9 ment of Homeland Security, the following funds are here-
10 by rescinded from the following accounts and programs
11 in the specified amounts: *Provided*, That no amounts may
12 be rescinded from amounts that were designated by the
13 Congress as an emergency requirement pursuant to a con-
14 current resolution on the budget or the Balanced Budget
15 and Emergency Deficit Control Act of 1985:

16 (1) \$600,000,000 from the unobligated bal-
17 ances available under the heading “U.S. Customs
18 and Border Protection—Procurement, Construction,
19 and Improvements” of the amounts provided by
20 Public Law 116–260 for the construction of barrier
21 system along the southwest border.

22 SEC. 551. Of the unobligated balances in the “De-
23 partment of Homeland Security Nonrecurring Expenses
24 Fund” established in section 538 of division F of Public
25 Law 117–103, \$154,000,000 are hereby rescinded.

1 SPENDING REDUCTION ACCOUNT

2 SEC. 552. \$0.

3 This Act may be cited as the “Department of Home-
4 land Security Appropriations Act, 2025”.

Union Calendar No. 456

118TH CONGRESS
2^D Session

H. R. 8752

[Report No. 118-553]

A BILL

Making appropriations for the Department of
Homeland Security for the fiscal year ending
September 30, 2025, and for other purposes.

JUNE 14, 2024

Committed to the Committee of the Whole House on the
State of the Union and ordered to be printed